

Structures, Powers, and Functions of Congress

"Mr. Baker [Senate aide] proved especially adept at the math of the Senate. He would know precisely how many votes a piece of legislation could garner at any given moment, a valuable skill in the horse-trading world of Washington politics."

—Neil Genzlinger, Bobby Baker's obituary, *New York Times*, 2017

Essential Question: How do the structures, powers, and functions of Congress affect the policymaking process?

Congress's constitutional design shapes how it makes policy. Elected lawmakers work to improve the United States while representing people of unique views across the nation. The House and Senate differ overall, and within each are chamber-specific roles and rules that impact the law and policymaking process.

Congress is organized into leadership roles, committees, and procedures. Strong personalities and skilled politicians work their way into the leadership hierarchy, wielding great influence in running the nation's government. The way in which ideas become law, or more often, fail to become law, are essential to understanding the structures, powers, and functions of Congress.

Policymaking Structures and Processes

The design of Congress and the powers the framers bestowed on the two chambers within that institution have shaped how the legislative branch makes policy. Elected lawmakers work to improve the United States while representing people of unique views across the nation. Formal groups and informal factions operate differently in the House and Senate.

Congress is organized by house, political party, leadership, and committee. The parties create leadership positions to guide their own party members, to move legislation, and to carry out party goals. The party with the most members is the majority party and is in a strong position to set the agenda through its leaders and committee chairpersons. Standing committees are where the real work gets done, especially in the more structured House. Some of the powerful committees are institutions unto themselves, especially in the

House. Congress's formalized groups include both lawmaking committees and partisan or ideological groups.

Leadership

The only official congressional leaders named in the Constitution are the Speaker of the House, the President of the Senate, and the president *pro tempore* of the Senate. The document states that the House and Senate “shall choose their other Officers.”

At the start of each congressional term in early January on odd years, the first order of business in each house is to elect leaders. The four *party caucuses*—that is, the entire party membership within each house—gather privately after elections, but days before Congress opens, to determine their choices for Speaker and the other leadership positions. The actual public vote for leadership positions takes place when Congress opens and is invariably a party-line vote. Once the leaders are elected, they oversee the organization of Congress, help form committees, and proceed with the legislative agenda.

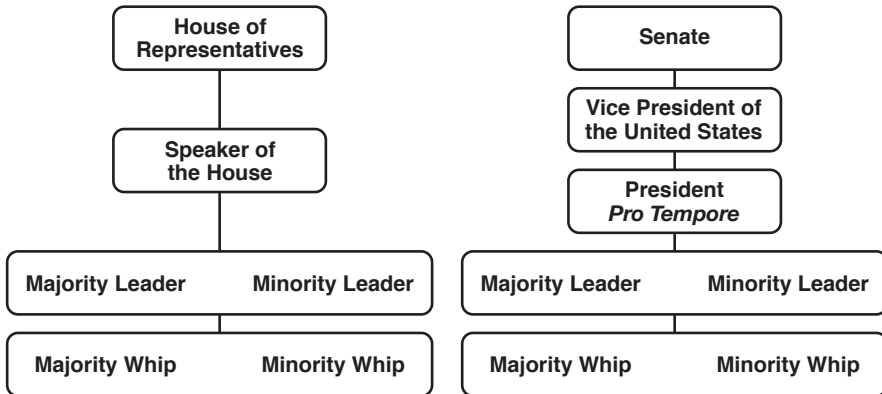
House Leaders Atop the power pyramid in the House of Representatives is the **Speaker of the House**, which is the only House leadership position mentioned in the Constitution. As the *de facto* leader of the majority party in the House, the Speaker wields significant power. In 2007, Nancy Pelosi (D-CA) became the first female Speaker of the House and was reelected in 2019. Paul Ryan (R-WI) presided as Speaker over the Republican-controlled House before the Democrats regained the majority in the 2018 midterm elections.

The Speaker recognizes members for floor speeches and comments, organizes members for conference committees, and has great influence in most matters of lawmaking.

On the next rung down in the House are the majority and minority leaders. These floor leaders direct debate from among their party's members and guide the discussion from their side of the aisle. They are the first members recognized in debate. Party leaders have also become spokespersons for the party. They offer their party messages through news conferences and in interviews on cable networks and Sunday talk shows.

Below the floor leader is the deputy leader, or **whip**, who is in charge of party discipline. The whip keeps a rough tally of votes among his or her party members, which aids in determining the optimum time for a vote. Whips communicate leadership views to members and will strong-arm party members to vote with the party. Political favors or even party endorsements during a primary election can change the mind of representatives contemplating an independent or cross-party vote. The whip also assures that party members remain in good standing and act in an ethical and professional way. When scandals or missteps occur, the whip may insist a member step down from serving as a committee chair or leave Congress entirely.

Leadership in Congress



The Congressional leadership represented above results from a mix of constitutional, congressional, and party definitions. The Speaker is in charge in the House, while the majority leader has the most control and influence in the Senate.

Senate Leaders In the Senate, a similar structure exists. The Constitution names the vice president as the nonvoting **President of the Senate**, but vice presidents in the modern era are rarely present. In lieu of the vice president as the presiding officer, senators in the majority party will share presiding duties. In case of a tie vote, the Constitution enables the vice president to break it.

Article I also provides for the **president pro tempore**, or temporary president. The “pro tem” is mostly a ceremonial position held by the most senior member of the majority party. The tasks involved with the role include presiding over the Senate in the absence of the vice president, signing legislation, and issuing the oath of office to new senators. The role of the president pro tem in presidential succession was addressed with the Twenty-fifth Amendment. Among several provisions, the Twenty-fifth Amendment states the president pro tem assumes the position of vice president if a vacancy in the office occurs.

The **Senate majority leader** wields much more power in the Senate than the vice president and pro tem. The majority leader is, in reality, the chief legislator, the first person the chair recognizes in debate and the leader who sets the legislative calendar and determines which bills reach the floor for debate and which ones do not. The majority leader also guides the party caucus on issues and party strategy. Senate leaders do not have final say in the decisions of individual party members; each makes his or her own independent choice, and the Senate’s less formal rules for debate enable members to address their colleagues and the public more easily than in the House. Former Senate majority leaders have expressed frustration over the effort to guide party members. Senator Bob Dole (R-KS, 1974–1996), who served in a number of leadership positions in the Senate, once said the letter “P” was missing from his title, “Majority Pleader.”

The Senate whips serve much the same purpose as their House counterparts. They keep a tally of party members' voting intentions and try to maintain party discipline. The conference chair also serves the same function in the Senate as in the House, overseeing party matters.

Committees

Committees are not mentioned in the Constitution, but they have been fixtures in Congress since it first met. Smaller groups can tackle tough issues and draft more precise laws than the entire House or Senate can. Committees allow lawmakers to put their expertise to use, and they make the process of moving a bill to a law manageable. The intricate committee system handles a vast amount of legislation. Committees dealing with finance, foreign relations, the judiciary, and other common topics have become permanent, public lawmaking groups. They conduct hearings and debate bills under consideration, playing key roles in the legislative process in both houses.

Standing Committees Permanent committees focused on a particular policy area are called standing committees. Members of Congress can specialize in a few topics and become experts in these areas. For example, the House Energy and Commerce Committee has wide authority on utilities and gasoline, as well as almost any business matter. The Committee on Transportation and Infrastructure oversees the creation and maintenance of U.S. highways, regulates airports, and delivers billions in grants.

Committee chairpersons are invariably senior members in the majority party experienced on that committee. The vice chair or "ranking member" is the senior committee member from the minority party. The majority party always holds the majority of seats on each committee and therefore controls the flow of legislation because a bill must first clear committee with a majority vote before it can move to the House or Senate floor for a vote.

As part of the Senate's advice and consent role, standing committees in this body hold confirmation hearings for presidential nominations. For example, a nominated secretary of defense must appear before the Armed Services Committee to answer individual senators' questions. After this hearing, a majority can recommend the nominee to the full Senate for approval.

Standing committees have a number of other vital roles. For example, the House Judiciary Committee drafts crime bills that define illegal behavior and outline appropriate punishments. It also handles impeachments. In 1974, the House Judiciary Committee voted 27 to 11 to recommend impeachment of President Richard Nixon. He resigned before the entire House took a vote. On December 13, 2019, this committee voted for articles of impeachment against President Donald Trump. The full House voted to impeach him five days later.

Members want to serve on the powerful House **Ways and Means Committee**, a committee exclusive to the House that determines tax policy. The Ways and Means Committee is the first to outline details when proposals are put forward to raise or lower income taxes. Other members want to serve

on the Appropriations Committees, which are found in both houses. These two committees influence or control the “purse strings.”

Lawmakers also seek committee appointments in fields in which they have expertise, or that have special interest for their state or district. For example, nearly 100 members of Congress have served in the Armed Forces; these members are well qualified to shape Congress’s military policy. Some lawmakers have high-level business experience and will influence commerce regulations or international trade law. The Democrats and Republicans each have a committee for the purpose of assigning members to standing committees. The Democrats’ Steering and Policy Committee and the Republicans’ Committee on Committees recommend certain members for committee assignments, but ultimately each full house votes to approve committee membership.

COMMITTEE TYPES
Standing: Permanent committees that handle most of Congress’s work
Joint: Members of both houses that address a long-term issue or program
Select or Special: Temporary committee that handles a particular issue or investigation
Conference: House and Senate members who reconcile similar bills

Congress has a few permanent **joint committees** that unite members from the House and Senate, such as one to manage the Library of Congress and the Joint Committee on Taxation. Members of these committees do mostly routine management and research.

Both houses form temporary or **select committees** periodically for some particular and typically short-lived purpose. A select or special committee is established “for a limited time period to perform a particular study or investigation,” according to the U.S. Senate’s online glossary. “These committees might be given or denied authority to report legislation to the Senate.” Select committees can be exclusive to one house or can also have joint committee status.

Notable select committees have investigated major scandals and events, such as the 2012 terrorist attack on the U.S. Consulate in Benghazi, Libya. These groups also investigate issues to determine if further congressional action is necessary. Recently the House created a select committee on Energy Independence and Global Warming. A bill originally introduced in 1989, H.R. 40, was reintroduced in 2019 to establish a select committee to study the effects of slavery and possible reparations for decedents of the formerly enslaved.

When a bill passes both houses but in slightly different forms, a temporary **conference committee** is created to iron out differences on the bill. It is rare that legislation on a particular issue will be identical when approved by both the House and Senate. When two similar bills pass each house, usually a compromise can be reached. Members from both houses gather in a conference committee for a markup session, a process by which the bill is edited, or marked up. The final draft must pass both houses before going on to possibly receive the president’s signature.

In addition to creating bills and confirming presidential appointments, committees also oversee how the executive agencies administer the laws Congress creates. Through its committees, Congress conducts congressional oversight to ensure that executive branch agencies, such as the FBI or the TSA, are carrying out the policy or program as defined by Congress. When corruption or incompetence is suspected, committees call agency directors to testify. Oversight hearings also may simply be fact-finding exchanges between lawmakers and Cabinet secretaries or agency directors about congressional funding, efficiency, or just general updates. (See Topic 2.14 for more on congressional oversight.)

Committees and Rules Unique to the House

Both the House and Senate follow parliamentary procedure outlined in Robert's Rules of Order, guidelines for conducting discussion and reaching decisions in a group. With so many members representing so many legislative districts, however, the House has rules that limit debate. A member may not speak for more than an hour and typically speaks for less. These legislators can offer only **germane** amendments to a bill, those directly related to the legislation under consideration. In the House, amendments to bills typically must first be approved by the committee overseeing the bill.

The presiding officer—the Speaker of the House or someone he or she appoints—controls chamber debate. House members address all their remarks to “Madam Speaker” or “Mister Speaker” and refer to their colleagues by the state they represent, as in “my distinguished colleague from Iowa.” The control the presiding officer enjoys, time limits, and other structural practices help make the large House of Representatives function with some efficiency.

The House **Rules Committee** is very powerful. It can easily dispose of a bill or define the guidelines for debate because it acts as a traffic cop to the House floor. Nothing reaches the floor unless the Rules Committee allows it. This committee generally reflects the will and sentiment of House leadership and the majority caucus. It impacts every House bill because it assigns bills to the appropriate standing committees, schedules bills for debate, and decides when votes take place. The entire House must vote to make a law, but the Rules Committee wields great power in determining what issues or bills other members will vote on.

The **Committee of the Whole** is also unique to the House. It includes but does not require all representatives. However, the Committee of the Whole is more of a state of operation in which the House rules are relaxed than an actual committee. It was created to allow longer debate among fewer people and to allow members to vote as a group rather than in an individual roll call. Additionally, the otherwise nonvoting delegates from U.S. territories—Puerto Rico, Guam, and others—can vote when the House operates in the Committee of the Whole. Only 100 members must be present for the Committee of the Whole to act. When it has finished examining or shaping a bill, the Committee “rises and reports” the bill to the House. At that point the more formal rules of

procedure and voting resume, and, if a quorum is present, the entire House will vote on final passage of the bill.

A modern device that functions as a step toward transparency and democracy in the House is the **discharge petition**. The discharge petition can bring a bill out of a reluctant committee. The petition’s required number of signatures has changed over the years. It now stands at a simple majority to discharge a bill out of committee and onto the House floor. Thus, if 218 members sign, no chairperson or reluctant committee can prevent the majority’s desire to publicly discuss the bill. This measure may or may not lead to the bill’s passage, but it prevents a minority from stopping a majority on advancing the bill and is a way to circumvent leadership.

SELECTED CONGRESSIONAL COMMITTEES AND KEY POLICY FOCUS IN THE 116 TH CONGRESS	
House of Representatives	Senate
Ways and Means Determines tax policy	Finance Oversees spending and budgeting
Rules Determines House proceedings	Armed Services Oversees the military
Armed Services Oversees the military	Foreign Relations Guides U.S. foreign policy
Judiciary Drafts crime bills; impeachments	Judiciary Confirms judges; oversees courts
Energy and Commerce Regulates energy and business	Agriculture, Nutrition, and Forestry Addresses farming, food, and nature

In 2019, there were 20 standing committees in the House and 16 in the Senate.

Rules and Procedures Unique to the Senate

The smaller Senate is much less centralized and hierarchical than the House with fewer restrictions on debate. Senators can speak longer. However, the presiding officer has little control over who speaks when, since he or she must recognize anyone who stands to speak, giving priority to the leaders of the parties. Like representatives, senators are not allowed to directly address anyone but the presiding officer. They refer to other senators in the third person (“the senior senator from Illinois,” for example).

Senators can propose nongermane amendments. They can add amendments on any subject they want. Senators also have strategic ways to use their debate time. For example, they may try to stall or even kill a bill by speaking for an extremely long time, a tactic known as the **filibuster**, to block a nomination or to let the time run out on a deadline for voting on a bill. Filibusters are a Senate procedure (not a constitutional power) that any senator may invoke and use to wear down the opposition or extract a deal from the Senate leadership. In contrast, the only House members who are allowed to speak as long as they want are the Speaker of the House, the majority leader,

and the minority leader. On February 6, 2018, House Minority Leader Nancy Pelosi spoke for eight hours straight in support of protections for people who were brought into the country illegally when they were children, the so-called “DREAMers.” She could not take a seat or a bathroom break for the entire time or else she would have had to yield the floor.

The Senate also uses measures that require higher thresholds for action than the House and that slow it down or speed it up. These include **unanimous consent**—the approval of all senators—and the **hold**, a measure to stall a bill. Before the Senate takes action, the acting Senate president requests unanimous consent to suspend debate. If anyone objects, the motion is put on hold or at least stalled for discussion. For years, senators abused this privilege, since a few senators, even one, could stop popular legislation. Then and now, senators will place a hold on a motion or on a presidential appointment as a bargaining tool.

Such delays in the past have brought about changes in the rules. As the United States stepped closer to war in 1917, President Woodrow Wilson called for changes in Senate procedures so that a small minority of senators could not block U.S. action in arming merchant ships for military use. A filibuster had blocked his armed neutrality plan before the United States’ entrance into World War I. President Wilson was enraged. He said the Senate “is the only legislative body in the world which cannot act when its majority is ready for action. A little group of willful men, have rendered the great government of the United States helpless.”

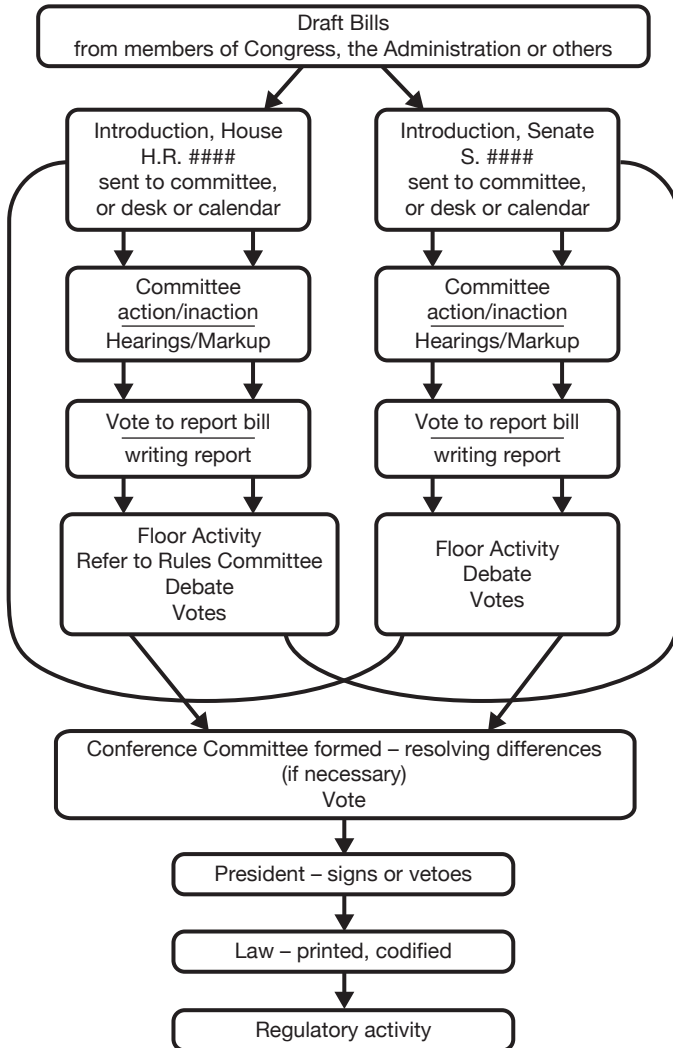
A special session created Rule 22, or the **cloture rule**, which enabled and required a two-thirds supermajority to stop debate on a bill, thus, stopping a filibuster and allowing for a vote. In 1975, the Senate lowered the standard to three-fifths, or 60 of 100 senators. Once cloture is reached, each senator has the privilege of speaking for up to one hour on that bill or topic.

Foreign Policy Functions While both houses have a Foreign Affairs Committee, the Senate has more foreign relations duties. The framers gave the upper house the power to ratify or deny treaties with other countries. The Senate also confirms U.S. ambassadors. Because the Senate is smaller and originally served as agents of the states, the framers gave it more foreign policy power than the House. In *Federalist No. 75*, Hamilton pointed to its continuity. “Because of the fluctuating and . . . multitudinous composition of [the House, we can’t] expect in it those qualities . . . essential to the proper execution of such a trust.” The chair of the Senate Foreign Relations Committee works closely and often with the president and secretary of state to forge U.S. foreign policy.

The Legislative Process

Lawmaking procedures in each house have been developed to guide policymaking and legislative customs. Both bodies have defined additional leaders that guide floor debate, assure party discipline, and serve as liaisons to the opposing party, the president, and the media. The framers declared in Article I that each house would determine its own rules as further assurance of a bicameral system.

How a Bill Becomes a Law



Introducing and Amending Bills

Only House or Senate members can introduce a bill. Today, however, the actual authors of legislation are more often staffers with expertise, lobbyists, White House liaisons, or outside professionals. When a bill's **sponsor** (the member who introduces it and typically assumes authorship) presents it, the bill is officially numbered. Numbering starts at S.1 in the Senate or H.R.1 in the House at the beginning of each biennial Congress.

Several events take place in the process, creating opportunities for a bill to drastically change along the way. Additional ideas and programs can become attached to the original bill. The nongermane amendments, or **riders**, are often added to benefit a member's own agenda or programs or to enhance the

political chances of the bill. Representative Morris (“Mo”) Udall (D-AZ) once expressed frustration when he had to vote against his own bill, because it had evolved into legislation he opposed.

How each house, the president, and the public view a bill will determine its fate. The rough-and-tumble path for legislation often leads to its death. In a typical two-year period, thousands of bills are introduced and only a small portion are enacted into law. In the 115th Congress (January 2017–January 2019), representatives and senators introduced more than 13,000 bills and resolutions. About 9 percent, or 1,150, were enacted.

An **omnibus bill** includes multiple areas of law and/or addresses multiple programs. A long string of riders will earn it the nickname “Christmas Tree bill” because it often delivers gifts in the form of special projects a legislator can take home, and, like the ornaments and tinsel on a Christmas tree, the “decorations” so many legislators added to the bill give it an entirely different look.

Pork-Barrel Spending One product of these legislative add-ons is **pork barrel spending**—funds earmarked for specific purposes in a legislator’s district. Federal dollars are spent all across the nation to fund construction projects, highway repair, new bridges, national museums and parks, university research grants, and other federal-to-state programs. Members of Congress try to “bring home the bacon,” so to speak. Riders are sometimes inserted onto bills literally in the dark of night by a powerful leader or chair, sometimes within days or hours before a final vote to avoid debate on them.

Constituents who benefit from pork barrel spending obviously appreciate it. Yet, in recent years the competition for federal dollars has tarnished Congress’s reputation. Citizens Against Government Waste reported an explosion of earmarks from 1994 to 2004. Congress passed more than five times as many earmarked projects, and such spending rose from \$10 billion to \$22.9 billion.

The most egregious example of pork barrel politics came when Senator Ted Stevens (R-AK) added a rider to a bill primarily meant to provide armor for U.S. troops in Iraq. The rider called for spending more than \$400 million to connect a small community of about 50 residents and a regional airport to the Alaska mainland. Critics dubbed the construction project “The Bridge to Nowhere.”

Assigning Bills to Committee

The Senate majority leader and the House Rules Committee assign bills to committees in their respective chambers. Sometimes multiple committees have overlapping jurisdiction. A military spending bill may be examined by both the Armed Services Committee and the Appropriations Committee. In that case, the bill may be given multiple referral status, allowing both committees to address it simultaneously. Or it might have sequential referral status, giving one committee priority to review it before others. Frequently, subcommittees with a narrower scope are involved.



Source: Department of Defense, Staff Sgt. Sean K. Harp

The secretary of defense and another ranking Pentagon official testify before a House Appropriations subcommittee.

In committee, a bill goes through three stages: hearings, markup, and reporting out. If the committee “orders the bill,” then hearings, expert testimony, and thorough discussions follow. The chair will call for a published summary and analysis of the proposal with views from other participants, perhaps testimony from members of the executive branch or interest groups. Then the bill goes through markup, where committee members amend the bill until they are satisfied. Once the bill passes committee vote, it is “reported out” on the House or Senate floor for debate. The ratio of “yeas” to “nays” often speaks to the bill’s chances there. Further amendments are likely added. From this point, many factors can lead to passage and many more can lead to the bill’s failure.

The committee chair can also “pigeonhole” a bill—decide not to move it forward for debate until a later time, if at all.

Voting on Bills

Many lawmakers say one of their hardest jobs is voting. Determining exactly what most citizens want in their home state is nearly impossible. Legislators hold town hall meetings, examine public opinion polls, and read stacks of mail and emails to get an idea of their constituents’ desires. Members also consider a variety of other factors in deciding how to vote.

“Very often [lawmakers] are not voting for or against an issue for the reasons that seem apparent,” historian David McCullough once explained. “They’re voting for some other reason. Because they have a grudge against someone . . . or because they’re doing a friend a favor, or because they’re willing to risk their political skin and vote their conscience.”

Logrolling Another factor affecting lawmaking is **logrolling**, or trading votes to gain support for a bill. By agreeing to back someone else's bill, members can secure a vote in return for a bill of their own.

Generating a Budget

One of the most important votes congressional members take is on the question of how to pay government costs. The budgeting process is a complicated, multistep, and often year-long process that begins with a budget proposal from the executive branch and includes both houses of Congress, a handful of agencies, and interest groups.

In the 1970s, Congress created the Office of Management and Budget (OMB) and established the budgeting process with the Congressional Budget and Impoundment Control Act (1974). The OMB is the president's budgeting arm. Headed by a director who is essentially the president's accountant, the OMB considers the needs and wants of all the federal departments and agencies, the fiscal and economic philosophy of the president, federal revenues, and other factors to arrange the annual budget.

The 1974 act also defines the stages in *reconciling* the budget—passing changes to either revenue or spending by a simple majority in both houses with only limited time for debate—a process that can be used only once a year. It calls for Congress to set overall levels of revenues and expenditures, the size of the budget surplus or deficit, and spending priorities. Each chamber also has an appropriations committee that allots the money to federal projects. The Senate Finance Committee is a particularly strong entity in federal spending. Congress also created a congressional agency made of nonpartisan accountants called the Congressional Budget Office (CBO). This professional staff of experts examines and analyzes the budget proposal and serves as a check on the president's OMB.

Sources of Revenue For fiscal year 2019, the government expected to take in about \$3.4 trillion. Every year, government revenue comes from five main sources:

- **Individual income taxes**—taxes paid by workers on the income they made during the calendar year. People pay different tax rates depending on their income level.
- **Corporate taxes**—taxes paid by businesses on the profits they made during the calendar year.
- **Social insurance taxes (sometimes called payroll taxes)**—taxes paid by both employees and employers to fund such programs as Social Security, Medicare, and unemployment insurance.
- **Tariffs and excise taxes**—taxes paid on certain imports or products. The tariff on imports is meant to raise their price so U.S.-made goods will be more affordable and competitive. Excise taxes are levied on specific products—luxury products, for example, or products

associated with health risks, such as cigarettes—as well as on certain activities, such as gambling.

- **Other sources**—taxes that include interest on government holdings or investments and estate taxes paid by people who inherit a large amount of money.

The table below shows the percentage of revenue from each category between 1950 and 2020.

CATEGORIES OF GOVERNMENT REVENUE					
Fiscal Year	Individual Income Tax	Corporate Income Tax	Social Insurance and Retirement (Payroll taxes)	Excise	Other
	% of total revenue	% of total revenue	% of total revenue	% of total revenue	% of total revenue
1950	39.9	26.5	11	19.1	3.4
1960	44	23.2	15.9	12.6	4.2
1970	46.9	17	23	9.2	5
1980	47.2	12.5	30.5	4.0	4.8
1990	45.2	9.1	36.8	3.4	5.4
2000	49.6	10.2	32.2	3.4	4.5
2010	41.5	8.9	40	3.1	6.5
2020 (est)	49.6	7.3	35.7	3.1	4.2

Source: U.S. Government Publishing Office, 2019 Budget

As you can see, the highest percentage of government revenue comes from individual income taxes. The budget for fiscal year 2019 called for spending \$4.4 trillion. Each year spending falls into three categories: mandatory spending, discretionary spending, and interest on debt.

Mandatory Spending

Mandatory spending is payment required by law, or mandated, for certain programs. These programs include Social Security, Medicare, Medicaid, unemployment insurance, and other special funds for people in temporary need of help. Congress has passed laws determining the eligibility for these programs and the level of payments, so on the basis of those laws mandatory spending happens automatically. Of the \$4.4 trillion, mandatory spending for 2019 was expected to be \$2.7 trillion, more than 60 percent of the federal budget.

You may have noticed that the expected revenue for 2019 was \$3.4 trillion, while the expected outlay was \$4.4 trillion. The difference between spending and revenue, close to a trillion dollars in 2019, is the **deficit**. As in previous

years, the government has to borrow money to pay that deficit, and each year’s loans add to the already large national debt of \$20 trillion.

The interest payments on the national debt are massive and must be a part of the annual budget. In 2020, the interest will be more than \$400 billion, or about 10 percent of the federal budget, and must also be paid out of each year’s revenue. Some consider interest on debt as mandatory spending, since the government must pay its creditors or risk default, which would result in a serious financial crisis.

Discretionary Spending

Discretionary spending is funding that congressional committees debate and decide how to divide up. This spending—about 38 percent of the 2019 budget—pays for everything else not required under mandatory spending. The chart below shows the percentage of government spending from 1950 to 2020 in various categories.

CATEGORIES OF GOVERNMENT SPENDING						
Fiscal Year	Defense (Military)	Human Resources*	Physical Resources**	Interest on Debt	Other Functions***	Undistributed Offsetting Receipts****
	% of total revenue	% of total revenue	% of total revenue	% of total revenue	% of total revenue	% of total revenue
1950	32.2	33.4	8.6	11.3	18.7	−4.3
1960	52.2	28.4	8.7	7.5	8.4	−5.2
1970	41.8	38.5	8.0	7.4	8.8	−4.4
1980	22.7	53	11.2	8.9	7.6	−3.4
1990	23.9	49.4	10.1	14.7	4.8	−2.9
2000	16.5	62.4	4.7	12.5	6.4	−2.4
2010	20.1	69	2.6	5.7	5.0	−2.4
2020 (est)	15.9	69.8	3.0	9.7	3.6	−2.0

Source: U.S. Government Publishing Office, 2019 Budget

- * Includes Education, Health and Human Services, Housing and Urban Development, and mandatory spending on Social Security, Medicare, Income Security, and Veterans Benefits and Services
- ** Includes Energy, Natural Resources and Environment, Commerce and Housing Credit, Transportation, Community and Regional Development
- *** Includes International Affairs; Science, Space, and Technology; Agriculture; Administration of Justice; General Government
- **** Includes government earnings on oil and gas leases and collection of funds from government agencies for their employees’ retirement and other benefits

As the chart on government spending shows, human resources spending is the largest category of discretionary spending. In 2020 it will account for more than half of discretionary spending. The rest of discretionary spending needs must be met by what remains.

Between 1950 and 2020, government spending in the Human Resources category, most of which is mandatory, has grown from about 30 percent of revenue to about 70 percent. That increase needs to be balanced with a decrease in discretionary spending or an increase in revenue or national debt. Conservatives tend to argue that people's tax burden is already significant and that instead of raising taxes or increasing debt, the government should pass laws that reduce the social programs that are responsible for most mandatory spending. Liberals tend to argue that rich people can bear a burden of higher taxes—historically the rich have paid taxes at a higher rate than they do today—and that the mandated social programs serve a vital function in an economy with a vastly unequal distribution of wealth. These principles, as well as pressures from a variety of interest groups (see Topic 5.6), are behind the annual push and pull of budget negotiations in Congress.



THINK AS A POLITICAL SCIENTIST: *DESCRIBE THE DATA PRESENTED*

Political scientists use their knowledge of political processes and institutions along with data available each year to understand changes in the patterns of government revenue and spending. They identify trends and then look for causes for these trends, reasons for the causes and/or effects, the significance of the causes and/or effects, and the implications of the changes over time. Being able to explain causes and effects is necessary for devising solutions to the many challenges facing government.

Practice: Review the tables on page 120 (Categories of Government Revenue) and page 121 (Categories of Government Spending) and complete the following tasks:

1. Study the table of revenue over time and identify one downward trend and one upward trend.
2. Study the table of government spending over time and identify the only spending category that has consistently risen.
3. Explain why the other categories of spending decreased.
4. Explain the significance of the changes over time in federal spending and their effect on possible directions the federal budget might take in the future.

REFLECT ON THE ESSENTIAL QUESTION

Essential Question: *How do the structures, powers, and functions of Congress affect the policy-making process? On separate paper, complete a chart like the one below.*

	Senate	House of Representatives
Committees and Policymaking		
Unique Rules and Procedures		

KEY TERMS AND NAMES

- | | |
|------------------------|------------------------------|
| cloture rule | pork-barrel spending |
| Committee of the Whole | President of the Senate |
| conference committees | president <i>pro tempore</i> |
| deficit | rider |
| discharge petitions | Rules Committee |
| discretionary spending | select committees |
| filibuster | Senate majority leader |
| germane | Speaker of the House |
| hold | sponsor |
| joint committees | unanimous consent |
| logrolling | Ways and Means Committee |
| mandatory spending | whip |
| omnibus bill | |

Congressional Behavior

“...in the contemporary Congress—the belief, especially in the House, that deliberation, fairness, bipartisanship, and debate are impediments to the larger goal of achieving political and policy success.”

—Norm Ornstein and David Mann, *The Broken Branch*, 2006

Essential Question: How is congressional behavior influenced by election processes, partisanship, and divided government?

In December 2018, the longest government shutdown in the United States began. Among the causes of the shutdown were disagreements over financing a U.S.-Mexico border wall and funding government agencies. Democrats and Republicans each rejected proposals of the other and could not find common ground to move the budget talks along. Numerous government agencies were affected, and some had to partially stop providing their services; the most notable was the Transportation Security Administration (TSA). When New York’s LaGuardia Airport had to shut down due to TSA short staffing, the population and the government took notice. After 35 days, the shutdown came to an end when President Trump signed a bipartisan spending bill.

Influences on Congress

Congress’s effectiveness is determined by its ideological division, the changing nature of the job, the citizens lawmakers represent, and the way lawmakers represent them. Intensifying partisanship has caused **gridlock**—the “congestion” of opposing forces that prevents ideas from moving forward—within each house and between the Congress and the president. Also, the reshaping of House voting districts has created one-party rule in several districts, making winning legislative seats too easy for some members and practically impossible for others. Bitter election contests and longer campaign periods have put Republican and Democratic members at further odds. And legislators’ differing approaches on voting have shaped the institution.

Partisanship and Polarization

The legislature has developed into a partisan and sometimes uncivil institution. A variety of factors has driven a wedge between liberal and conservative members (see Topic 4.7) and has placed them at points farther from the middle on each end of the ideological spectrum. From the 1950s into the 1970s,

political scientists complained that on many issues it was difficult to tell the parties apart. As Republicans retired, more conservative Republicans replaced them. Southern Democrats, once a moderating force in Congress, have all but disappeared. Party-line voting is much more common than it once was, while straying from party positions has become dangerous for those interested in reelection.

Voting Models

Party leaders encourage members to follow the party-line vote, especially if political favors are expected. Other members are ideologically aligned with certain groups who back them at election time. Those following the lead of their party or some other group are operating in what is known as an organizational way.

However, different lawmakers use differing voting models, or approaches to how they vote. Those members trying to reflect the will of their constituency, especially in the House, follow the **delegate model**. At a town hall meeting in one member's district, an irritated and upset constituent shot down his representative's explanation for an unpopular vote. "We didn't send you to Washington to make intelligent decisions," the angry voter said, "we sent you to represent us." That representation can be *substantive*—that is, advocating on behalf of certain groups of constituents—or it can be *descriptive*, advocating not only for the views of constituents but also for the factors that make those constituents unique, such as geography, occupation, gender, and ethnicity.

Some members, especially in the Senate, vote according to the **trustee model**. Representatives believe they are entrusted by their constituency to use their best judgment, regardless of how constituents may view an issue. This approach sidesteps any concern over an uninformed constituency reacting from emotion rather than reason and knowledge.

The **politico model** of voting attempts to blend the delegate and trustee models. That is, lawmakers consider a variety of factors and decide their action or vote for whatever political calculations make the most sense to them at the time, especially when there seems to be little public concern. On matters generating strong public opinion, representatives using the politico model would take those opinions strongly into account.

Redistricting

Following the constitutionally required census every ten years, the reshaping of congressional districts based on shifts in population has influenced congressional behavior. State legislatures' redistricting processes are often competitive and contentious, and members of both parties vie to strengthen their party's chances of winning congressional elections. The redistricting process has increased partisanship and decreased accountabilities. The majority party in the state legislature often determines the new statewide congressional map, usually benefiting that party.

How district boundaries are drawn has an enormous impact on levels of democratic participation and the makeup of the House of Representatives,

which in turn has an enormous impact on public policy. Until the 1960s, legislative districting was regarded as having too much political and partisan conflict for the Supreme Court to get involved, since the Court's reputation of neutrality is vital to its authority. However, a landmark decision in 1962 opened the door for the Supreme Court to play a role in making legislative districts as democratic as possible.



MUST-KNOW SUPREME COURT CASE: *BAKER V. CARR* (1962)

The Constitutional Question Before the Court: Can the Supreme Court render judgment on the constitutionality of legislative districts?

Decision: Yes, for Baker, 6:2

Before *Baker*: In 1946, the Court decided in *Colegrove v. Green* that if a state legislature wasn't dividing up congressional districts fairly, it was the people's duty to force the legislature's hand or to vote the legislators out of office. Political scientist Kenneth Colegrove of Northwestern University had brought suit against Illinois officials to stop the upcoming election because the congressional districts lacked "compactness of territory and approximate equality of population." The Supreme Court held that the districts were constitutional, since no law required districts to be compact and equal in population. Justice Frankfurter went further, stating the redistricting process was an issue that would take the Court into the "political thicket," a place it shouldn't go.

The Facts: A Tennessee law from 1901 laid out guidelines for redrawing state legislative boundaries, and the state constitution required redistricting every ten years based on census reports. However, the legislature had failed to redraw the state's 95 voting districts since the census of 1900 and instead had continued to apply the apportionment guidelines from the 1901 law. Over the years, the cities of Nashville, Memphis, Chattanooga, and Knoxville grew, while rural areas developed much more slowly. As a result, the rural areas kept much lower constituent-to-lawmaker ratios. This disparity strengthened some rural citizens' votes and diluted those of some urban voters. For example, one-third of the voters living in the rural areas were electing two-thirds of the state's legislators, so citizens in these districts had a stronger voice on Election Day than voters in the urban districts. In the most extreme cases, some voters had one-twentieth the voting power of other citizens. This practice resulted in minority rule, an outcome in conflict with democratic principles of majority rule and fair representation, since a minority of voters had the majority of voting power. Yet legislators were dissuaded from voting for new maps because they could lose power in the redistricting.

In 1959, Charles Baker and several other litigants sued the Tennessee secretary of state—typically a state's chief election official—because the populations in various state legislative districts varied greatly. The fact that one person's vote was not necessarily equal to another person's vote, Baker said, violated the equal protection clause of the Fourteenth Amendment.

Reasoning: Based on this political inequality, the petitioner wanted the question for the Court to be, "Do Tennessee's outdated and disproportionally populated legislative districts violate the equal protection clause of the Fourteenth Amendment?" But the

Court, having decided in *Colegrove*, had to first address the question of its jurisdiction. Was the issue a *political* question, one for the legislature and ultimately the people to decide? Or was it a *justiciable* question, a question capable of being answered with legal reasoning and, therefore, within the Court's jurisdiction?

The Court decided the matter was justiciable and ruled that the Court can intervene when states do not follow constitutional principles in defining political borders, since those practices undermine the democratic ideal of an equal voice for all voters. The Court also developed a set of six criteria for determining when a question is political and therefore outside of the realm of the Court. But it gave no judgment on the uneven districts and let the lower courts then determine if in fact an inequality existed.

Chief Justice Earl Warren served from 1953 to 1969, overseeing a number of dramatic landmark cases that protected civil liberties and promoted civil rights. Yet, he said after he retired that ***Baker v. Carr*** was the most important case during his tenure. It helped establish the “**one person-one vote**” principle that greatly expanded democratic participation and the voting rights of minorities.

The Court's Majority Opinion by Mr. Justice William Brennan:

... [W]e hold today only (a) that the court possessed jurisdiction of the subject matter; (b) that a justiciable cause of action is stated upon which appellants would be entitled to appropriate relief, and (c) because appellees raise the issue before this Court, that the appellants have standing to challenge the Tennessee apportionment statutes. Beyond noting that we have no cause at this stage to doubt the District Court will be able to fashion relief if violations of constitutional rights are found, it is improper now to consider what remedy would be most appropriate if appellants prevail at the trial ...

... the 1901 statute constitutes arbitrary and capricious state action, offensive to the Fourteenth Amendment in its irrational disregard of the standard of apportionment prescribed by the State's Constitution or of any standard, effecting a gross disproportion of representation to voting population. The injury which appellants assert is that this classification disfavors the voters in the counties in which they reside, placing them in a position of constitutionally unjustifiable inequality vis-a-vis voters in irrationally favored counties. A citizen's right to a vote free of arbitrary impairment by state action has been judicially recognized as a right secured by the Constitution when such impairment resulted from dilution by a false tally, or by a refusal to count votes from arbitrarily selected precincts, or by a stuffing of the ballot box ...

We conclude that the complaint's allegations of a denial of equal protection present a justiciable constitutional cause of action upon which appellants are entitled to a trial and a decision.

Since *Baker*: The effect of the Court's decision in *Baker v. Carr* was widespread, since not only Tennessee but all states had to redraw legislative boundaries as a result because each person's vote had to be weighted equally. In the 1964 case of *Reynolds v. Sims*, the Court reaffirmed its role in apportionment issues.

Political Science Disciplinary Practices: Analyze, Interpret, and Apply the Decision

The Supreme Court's decision in the *Baker* case overturned precedent established in the *Colegrove v. Green* decision.

Apply: Complete the following tasks.

1. Identify the constitutional principle at issue in this case.
2. Explain how the Court's reasoning in the majority opinion supported the opinion.
3. Explain differences between the opinion in *Colegrove v. Green* and the opinion in *Baker v. Carr*.

Gerrymandering

Too often, there are illogical district lines drawn to give the advantage to one party, a process called **gerrymandering**. Districts in which a party consistently wins by more than 55 percent of the vote are considered *safe seats*; those districts with closer elections are referred to as *marginal seats* or **swing districts**. Countless districts across the United States have been carved out to guarantee safe seats and one-party rule through a process known as *partisan gerrymandering*. Today, each party has more than 180 safe seats in Congress, meaning there are only about 75 marginal seats up for grabs. Certain victory for incumbents or for candidates of the majority party of districts with safe seats lowers the incentive to compromise and raises the incentive to stick with party doctrine. The large number of safe seats encourages a vast proportion of Congress members to take a far left or far right position. Partly because of that divide, at the end of a legislative session, fewer policies that address and appease the middle—the vast majority of the American people—will ever get beyond a committee hearing.

This gerrymandering of safe-seat congressional districts has sometimes made the primary election the determining race and made the general election in November a mere formality. “Getting primaried” has become the new term explaining how an ideologically more extreme challenger can expose an incumbent’s record of compromise or tilt away from party positions in order to defeat him or her when the party faithful make that decision. Such challengers are often backed by special interests.

The result is a system of nominating the more conservative Republican or more liberal Democratic candidates who will ultimately win the primary and face off with their extreme counterparts in their respective legislative chambers. This system has shrunk the number of moderates in Congress. To counter this tactic, several states through citizen ballot initiatives and state laws have created independent commissions to remove the parties’ dominance in the process of drawing the maps.

Racial Gerrymandering The intentional drawing of legislative districts on the basis of race has also been the subject of scrutiny for conflicting reasons. First, it has been used to dilute the votes of African Americans and therefore has been found to violate their Fifteenth Amendment voting rights. Second, in well-intentioned overcorrections of this problem, racial gerrymandering was found to violate other voters’ rights to equal protection under the Fourteenth Amendment. This latter issue was the focus of another landmark redistricting decision from the Supreme Court, *Shaw v. Reno* (1993).



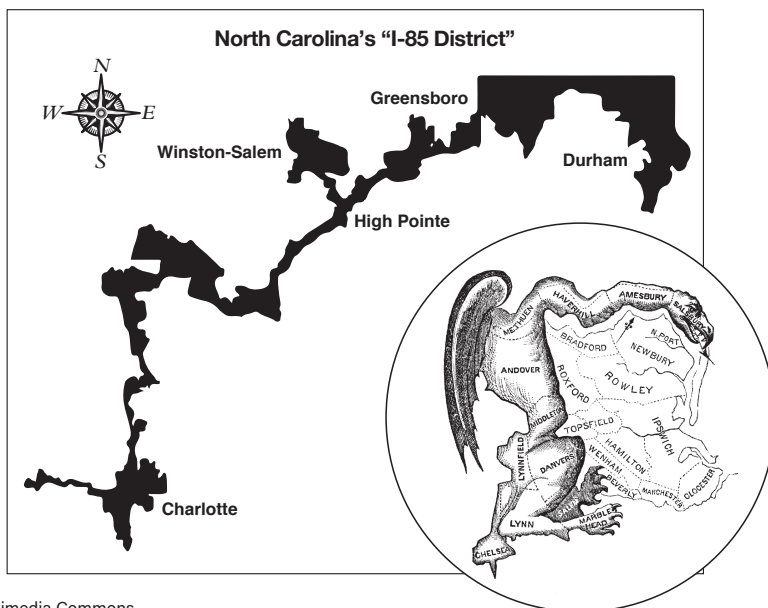
MUST-KNOW SUPREME COURT CASE: *SHAW V. RENO* (1993)

The Constitutional Question Before the Court: Does a congressional district, designed for the purpose of assuring a majority black population, violate the Fourteenth Amendment's equal protection clause?

The Answer: Yes, for *Shaw*, 5:4

Before *Shaw*: In the late 1950s, as greater numbers of African Americans registered and voted in Alabama, the case of *Gomillion v. Lightfoot* came to the Supreme Court. The city of Tuskegee contained a large black population and was on a path to constituting the majority of voters in the city. In response to this trend and fearing an African American-dominated government, the state legislature passed special legislation to alter the city's borders. What resulted was a 28-sided city border that placed black neighborhoods beyond the new city lines. Tuskegee Institute professor Charles Gomillion sued Tuskegee Mayor Phil Lightfoot. The Supreme Court decided the state, in its purposeful redesign of the city, had violated the litigants' Fifteenth Amendment right to vote.

Facts: After the 1990 census, and in compliance with the 1965 Voting Rights Act (see Topic 3.11), North Carolina submitted to the federal Justice Department its new map of congressional districts for review. Decades of racial gerrymandering in the era before the *Gomillion* decision had effectively disfranchised black voters and kept them from serving in the halls of government. To correct that problem, the Court had ruled that using race as a basis in creating legislative districts, including so-called majority-minority districts that contained more black than white residents, was permissible in the interest of fairness. In the North Carolina map submitted for review, only one district was a majority-minority district. Federal directives and goals encouraged U.S. Attorney General Janet Reno to send the map back to the state and insist it redraw the map with a second black-majority district. North Carolina complied and created some oddly shaped districts in the process.



Source: Wikimedia Commons

This cartoon (inset) appeared in a Boston newspaper in 1812 in response to a redistricting in Massachusetts created to favor the party of then-Governor Elbridge Gerry. The oddly shaped district resembled a salamander but in "honor" of the governor was dubbed the "Gerry-mander."

Early court filings and editorials commenting on the illogical districts compared them to a Rorschach inkblot test and “a bug splattered on a windshield.” North Carolina’s serpent-like 12th district, measuring 160 miles in length, stretched and curved from inner-city neighborhood to inner-city neighborhood to accumulate a majority black population. At some points it was no wider than the Interstate it straddled. Dubbed the “I-85 District,” this district and another resulted in two African American candidates—Mel Watt and Eva Clayton—winning seats in Congress. The map called into question the degree to which race can or should be used as a factor in drawing congressional districts. North Carolina’s Republican Party and five white individual voters brought suit—Ruth Shaw among them—suggesting the effort came as a result of separating citizens into classes by race in order to form the districts.

Reasoning: In a close vote, the Court ruled for Shaw, not because race was used as a factor in drawing district boundaries but rather that *only* race as a factor could explain the highly irregular district shape and its lack of other characteristics, including geography, usually considered when drawing boundaries. Using race as the only factor in drawing lines opposed the “colorblind” ideal of United States law, separating citizens into different classes without the justification of a compelling state interest and violating the Fourteenth Amendment.

The Court’s Majority Opinion by Justice Sandra Day O’Connor:

Our focus is on appellants’ claim that the State engaged in unconstitutional racial gerrymandering. That argument strikes a powerful historical chord: It is unsettling how closely the North Carolina plan resembles the most egregious racial gerrymanders of the past . . .

This Court never has held that race-conscious state decision making is impermissible in all circumstances. What appellants object to is redistricting legislation that is so extremely irregular on its face that it rationally can be viewed only as an effort to segregate the races for purposes of voting, without regard for traditional districting principles and without sufficiently compelling justification. For the reasons that follow, we conclude that appellants have stated a claim upon which relief can be granted under the Equal Protection Clause . . .

Accordingly, we have held that the Fourteenth Amendment requires state legislation that expressly distinguishes among citizens because of their race to be narrowly tailored to further a compelling governmental interest . . .

The message that such districting sends to elected representatives is equally pernicious. When a district obviously is created solely to effectuate the perceived common interests of one racial group, elected officials are more likely to believe that their primary obligation is to represent only the members of that group, rather than their constituency as a whole.

Political Science Disciplinary Practices: Analyze, Interpret, and Apply the Decision

The Court’s decision in the *Shaw* case shows that using only race as a factor in creating districts was not aligned with the Fourteenth Amendment.

Apply: Complete the following tasks.

1. Identify two potentially conflicting constitutional principles at issue in this case.
2. Explain how the Court justified its reasoning in the majority opinion.
3. Describe a similarity and a difference between the opinion in *Shaw v. Reno* and the opinion in *Gomillion v. Lightfoot*.

Divided Government and Senate Showdowns

Government is divided when the president is from one party and the House and/or Senate is dominated by the other. It fuels partisan gridlock, especially with judicial nominations. As the Supreme Court has become the arbiter of law on affirmative action, abortion, marriage equality, and gun rights, the fight between the parties about who sits on the Court has intensified.

In 2016, after the death of Associate Justice Antonin Scalia, Democratic President Barack Obama nominated District of Columbia Circuit Judge Merrick Garland to replace him. However, the Republican-held Senate, in a rare though not unprecedented move, refused to consider his nomination during Obama's last year in office. At the time, President Obama was a so-called **"lame duck" president**, or executive who has not won reelection or who is closing in on the end of the second presidential term, highlighting the partisan divide in government. In 2017, President Trump nominated conservative judge Neil Gorsuch to the Scalia seat. Gorsuch was quickly confirmed by a Republican-dominated Senate.

In 2018, an even more contentious confirmation hearing took place over President Trump's nominated Supreme Court Justice Brett Kavanaugh. Democratic senators grilled Kavanaugh on a number of issues, but the most heated discussions revolved around the alleged sexual misconduct of Kavanaugh in the early 1980s. The Republican-held Senate eventually confirmed Kavanaugh.

In both chambers, real floor debate has been replaced by carefully orchestrated speeches, while combative media-hungry lawmakers face off in head-to-head confrontations on cable TV news. As historian Lewis Gould put it, "In this hectic atmosphere of perpetual campaigning, the older values of collegiality and comity, though rarer than senatorial memory had it, eroded to the point of virtual disappearance."



THINK AS A POLITICAL SCIENTIST: DESCRIBE THE DECISIONS OF REQUIRED SUPREME COURT CASES

All cases that reach the Supreme Court have previously been ruled on in lower courts. (See Topic 2.8.) The decisions of the Court can define laws and will become the "law of the land." The rulings of the Supreme Court often have a lasting and dramatic effect on many citizens.

Some of the Court's rulings are straightforward and easy to understand, while other rulings can be complicated and challenging to interpret. Occasionally, one Court ruling will relate to another to further clarify an issue. The Supreme Court ruled on several related cases dealing with unequal representation of voters in the 20th century.

Practice: Review the *Baker v. Carr* (1962) and *Shaw v. Reno* (1993) cases from this topic and answer the following questions:

- 1. What were the similarities between the rulings in the cases?
- 2. What were the differences between the rulings in the cases?
- 3. In your opinion, which case will have the larger impact on U. S. politics and policymaking in the 21st century? Explain your answer.

Congress’s Public Image

When people asked humorist Will Rogers where he got his jokes, he replied, “Why I just watch Congress and report the facts.” Critics from Mark Twain to comedian Jon Stewart have cast Congress in a bad light. The media have also contributed to its tarnished reputation. Members’ conflicts of interest and an increased number of scandals have given the institution a black eye.

All of these factors help to create an image of an uncaring, “do nothing” Congress. The branch’s overall approval rating, as measured by Gallup, hovered in the mid-30 percent range in the early 1970s. Over the past decade, it has generally fallen below 20 percent.

Yet most individual members of Congress enjoy about a 60 percent approval rating from their constituents. Veteran Congressman Lee Hamilton (D-IN, 1965–1999) once suggested this help-wanted ad to better define the job description: “Wanted: A person with wide-ranging knowledge of scores of complex policy issues. Must be willing to work long hours in Washington, then fly home to attend an unending string of community events. Applicant should expect that work and travel demands will strain family life, and that every facet of public and private life will be subject to intense scrutiny and criticism.”

REFLECT ON THE ESSENTIAL QUESTION

Essential Question: *How is congressional behavior influenced by election processes, partisanship, and divided government? On separate paper, complete a chart like the one below.*

Factor that Influences Congressional Behavior	Impact of the Congressional Behavior

KEY TERMS AND NAMES

<i>Baker v. Carr</i> (1962)	politico model
delegate model	racial gerrymandering
gerrymandering	<i>Shaw v. Reno</i> (1993)
gridlock	swing district
“lame duck” president	trustee model
“one person-one vote” principle	

CHAPTER 4 Review:

Learning Objectives and Key Terms

TOPIC 2.1: Describe the different structures, powers, and functions of each house of Congress. (CON-3.A)		
Structure of Congress (CON-3.A.1) bicameral House of Representatives Senate Seventeenth Amendment (1913)	Differences Between Houses of Congress (CON-3.A.2 & 3) advice and consent coalitions power of the purse	Powers of Congress (CON-3.A.4) caucuses enumerated powers implied powers necessary and proper clause War Powers Act (1973)
TOPIC 2.2: Explain how the structures, powers, and functions of both houses of Congress affect the policy-making process. (CON-3.B)		
Differing Policymaking Powers (CON-3.B.1 & 5) cloture rule filibuster germane hold logrolling omnibus bill pork-barrel spending rider sponsor unanimous consent	Chamber-Specific Procedures (CON-3.B.2 & 3) Committee of the Whole conference committee discharge petition joint committees President of the Senate president <i>pro tempore</i> Rules Committee select committee Senate majority leader Ways and Means Committee whip	Congressional Budget (CON-3.B.4) deficit discretionary spending mandatory spending
TOPIC 2.3: Explain how congressional behavior is influenced by election processes, partisanship, and divided government. (CON-3.C)		
Congressional Behavior (CON-3.C.1) <i>Baker v. Carr</i> (1962) delegate model gerrymandering gridlock “lame duck” president “one person-one vote” principle		
politico model racial gerrymandering <i>Shaw v. Reno</i> (1993) swing district trustee model		

CHAPTER 4 Checkpoint:

Congress

Topics 2.1–2.3

MULTIPLE-CHOICE QUESTIONS

Questions 1 and 2 refer to the passage below.

We have before us one of the most important duties of the U.S. Senate and of the U.S. Congress, and that is to decide whether or not we will be involved in war. I think it is inexcusable that the debate over whether we involve the country in war, in another country's civil war, that this would be debated as part of a spending bill, and not as part of an independent, free-standing bill. I think it is a sad day for the U.S. Senate. It goes against our history. It goes against the history of the country.

—Senator Rand Paul, Senate Floor Speech, 2014

1. Which of the following best explains Senator Paul's perspective?
 - (A) The United States should not become involved in another country's civil war.
 - (B) The president should not have war-making authority except in an emergency.
 - (C) The military intervention the United States is considering needs a spending appropriation.
 - (D) The U.S. Senate should decide on war-like action on its individual merits.
2. Which institutional power of Congress is Senator Paul most concerned about?
 - (A) The power to tax and spend
 - (B) The power to ratify treaties
 - (C) The power to declare war
 - (D) The power to regulate interstate commerce
3. When the Senate Judiciary Committee passes a proposed crime bill by a vote of 11 to 10, which is most likely to follow?
 - (A) The Supreme Court will review the bill.
 - (B) The full Senate will consider the bill.
 - (C) The House of Representatives will consider the bill.
 - (D) The president will sign the bill.

Questions 4 and 5 refer to the table below.

HOUSE AND SENATE MEMBERS' AVERAGE AGE, 2011-2018				
Congress	Representatives	Newly Elected Representatives	Senators	Newly Elected Senators
112th	56.7 years	48.2 years	62.2 years	52.1 years
113th	57.0 years	49.2 years	62.0 years	53.0 years
114th	57.0 years	52.3 years	61.0 years	50.7 years
115th	57.8 years	50.8 years	61.8 years	54.8 years

4. Which of the following statements accurately describes a trend in the data above?
- (A) Newly elected members in each chamber are older than the average age of members in that chamber.
 - (B) Senators, on average, are younger than representatives.
 - (C) The 115th Congress had the youngest newly elected senators compared with earlier Congresses.
 - (D) Newly elected senators were on average older than newly elected House members.
5. Which of the following is an accurate conclusion based on the data in the table above?
- (A) Older people vote more frequently, and they want older people representing them.
 - (B) Shorter terms allow representatives to be frequently replaced by younger members.
 - (C) Serving in Congress often occurs following other successful careers.
 - (D) The Constitution requires these lawmakers to be at least 35 years old.
6. Which of the following is an accurate comparison of the processes of the U.S. House of Representatives and the U.S. Senate?

	HOUSE	SENATE
(A)	Allows filibusters until a majority vote defeats the filibuster	Is a 101-member body, as the vice president can vote on all bills
(B)	Has committees chaired by members of the minority party	Is the first chamber to introduce tax bills
(C)	Has more procedural rules guiding its lawmaking process	Has authority over the ratification of treaties with other nations
(D)	Has the sole power to declare war	Has the sole power of impeachment

FREE-RESPONSE QUESTIONS

Concept Application

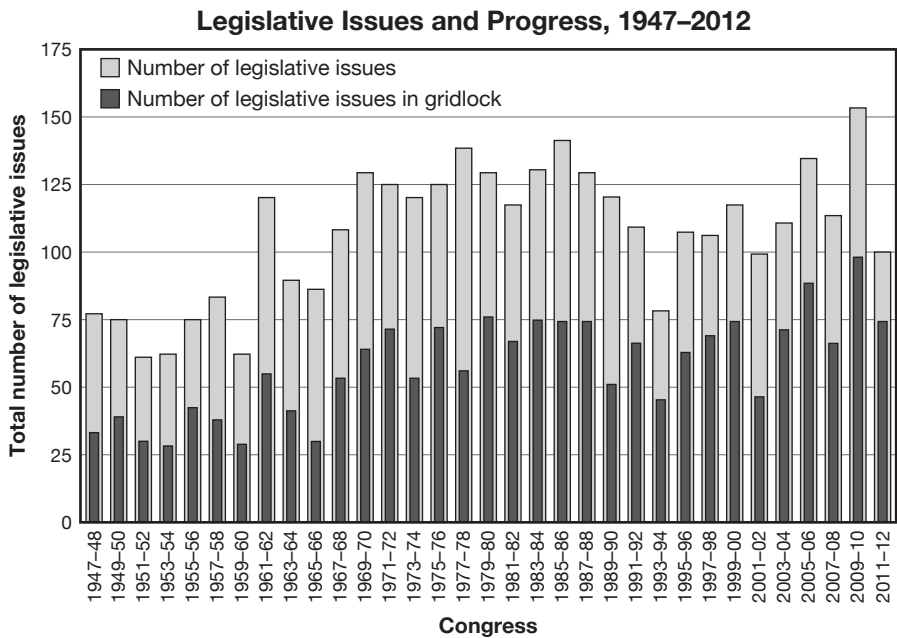
1. “Across the country, heroin and opioid abuse are growing at rapid rates, especially in New Hampshire. In schools, kids are learning to administer anti-overdose medication. That’s how bad the problem is: Police and firefighters, even family and friends, must carry medication like Narcan and know how to use it at a moment’s notice. We must protect them from liability laws that could interfere with emergency treatment. I’m grateful to the Judiciary Committee for helping to remove legal barriers.”

—Representative Frank Guinta (R-NH), sponsor of House bill (H.R. 5048), 2016

After reading the scenario, respond to A, B, and C below:

- (A) Describe the power the House Judiciary Committee used to address the concerns outlined by Representative Frank Guinta.
- (B) In context of the scenario, explain how the legislative process was followed by the House of Representatives to deal with the problem.
- (C) In the context of the scenario, explain how the required interactions between the House of Representatives and the Senate would be required to move H.R. 5048 into law.

Quantitative Analysis



Numbers derived from mentions of legislative issues in *New York Times* editorials during Congressional sessions. Gridlock was determined by following progress on the issues.

2. Use the graph from the previous page to answer the questions.
 - (A) Describe the information the data conveys.
 - (B) Describe a trend illustrated in the graphic.
 - (C) Draw a conclusion about the causes of that trend.
 - (D) Explain how gridlock demonstrates a key characteristic of the U.S. government as envisioned by the framers.

SCOTUS Comparison

3. After the 2000 census, a federal judge drew legislative districts in Texas because Democrats and Republicans could not agree on a map. After gaining power in the elections of 2002, Republicans in the Texas legislature redrew the map in 2003. Plaintiffs sued, arguing that the plan was an unconstitutional partisan gerrymander and violated the equal protection clause and the Voting Rights Act of 1965 by diluting racial minority voting strength. They also believed the mid-decade redistricting was illegal. A three-judge panel ruled that the new map was not unconstitutional, and the case was appealed to the Supreme Court as *League of United Latin American Citizens v. Perry* (2006).

The Court ruled that only one of the new districts, District 23, was drawn in violation of Section 2 of the Voting Rights Act because under the previous redistricting it was a protected majority-minority district of Latinos, but Latinos became a minority of voting-age citizens in the newly drawn district. However, the Court also ruled that the legislature could redraw the map at any time as long as it was done at least every ten years. It also ruled that the map was not unconstitutional on the basis of partisan gerrymandering.

- (A) Identify a difference between *League of United Latin American Citizens v. Perry* (2006) and *Shaw v. Reno* (1993).
- (B) Explain how the facts in *Shaw v. Reno* (1993) led to a different holding than in *League of United Latin American Citizens v. Perry* (2006).
- (C) Describe why these cases caused concern about the Supreme Court and the foundational principle of separation of powers.

CHAPTER 5

The Presidency

Topics 2.4–2.7

Topic 2.4 Roles and Powers of the President

CON-4.A: Explain how the president can implement a policy agenda.

- Required Foundational Document:
 - The Constitution of the United States

Topic 2.5 Checks on the Presidency

CON-4.B: Explain how the president's agenda can create tension and frequent confrontations with Congress.

Topic 2.6 Expansion of Presidential Power

CON-4.C: Explain how presidents have interpreted and justified their use of formal and informal powers.

- Required Foundational Documents: *Federalist No. 70*
 - The Constitution of the United States

Topic 2.7 Presidential Communication

CON-4.D: Explain how communication technology has changed the president's relationship with the national constituency and the other branches.



Source: Wikimedia Commons

The seal of the President of the United States

Roles and Powers of the President

“The executive branch shall construe [the law] in a manner consistent with the constitutional authority of the President . . . as Commander in Chief . . . [to protect] the American people from further terrorist attacks.”

—President George W. Bush, Signing Statement, 2005

Essential Question: How can a president implement a policy agenda?

The American presidency comes with ceremony, custom, and expectation. Presidential institutions, such as the White House, *Air Force One*, and the State of the Union address, are likely familiar to you. Signing ceremonies and photo opportunities with foreign dignitaries are common images. The Constitution lays out the president’s job description in broad language. The president has both formal and informal powers and functions to accomplish a **policy agenda**, a set of issues that are significant to people involved in policymaking.

The American presidency, visible on a world scale, is an iconic and powerful institution that has become much more influential over time. Presidents administer the law through a large bureaucracy of law enforcement, military, trade, and financial agencies. Chief executives meet with world leaders, design the national budget, and campaign for their party’s candidates.

Framers’ Vision

The delegates in Philadelphia in 1787 voted to make the presidency an executive office for one person. Fears arose because skeptics saw this office as a potential “fetus of monarchy.” One delegate tried to allay such fears, explaining “it will not be too strong to say that the station will probably be filled by men preeminent for their ability and virtue.”

Article II

The Constitution requires the president to be a natural-born citizen, at least 35 years old, and a U.S. resident for at least 14 years before taking office. The president is the Commander in Chief and also has the power to issue pardons and reprieves, and to appoint ambassadors, judges, and other public ministers. The president can recommend legislative measures to Congress, veto or approve proposed bills (from Article I), and convene or adjourn the houses of Congress. The framers also created a system by which the Electoral College chooses the president every four years.

Presidential Powers, Functions, and Policy Agenda

The president has many powers and functions that enable him to carry out the policy agenda he laid out during the campaign. The president exercises the **formal powers** of the office, those defined in Article II, as well as the **informal powers**, those political powers interpreted to be inherent in the office, to achieve policy goals. Congress and the Supreme Court have bestowed additional duties and placed limits on the presidency.

Formal and Informal Powers

A president cannot introduce legislation on the House or Senate floor but in many ways still serves as the nation's chief lawmaker. Article II also gives the president the power to convene or adjourn Congress at times. As the head of state, the president becomes the nation's chief ambassador and the public face of the country. As Commander in Chief, the president manages the military. Running a federal bureaucracy that resembles a corporation with nearly three million employees, the president is a CEO. And finally, as the de facto head of the party, the president becomes the most identifiable and influential Republican or Democrat in the country.

Article II: Qualifications, Duties, and Limits of the Presidency

- Must receive a majority of Electoral College votes to win the office
- Shall hold office for a four-year term
- Must be natural-born citizen, 35 years old, and U.S resident 14 years
- Shall be the Commander in Chief of the Army and Navy
- May require opinions of advisers and department heads
- May pardon convicted persons for federal offenses
- Shall appoint ambassadors, judges, and make treaties with Senate approval
- May recommend measures to Congress
- May convene or adjourn Congress

Chief Legislator The Constitution provides that the president “may recommend [to Congress] such measures as he shall judge necessary and expedient.” Presidents may recommend new laws in public appearances and in their State of the Union address or at other events, pushing Congress to pass their proposals. Congress often leaves this proactive approach to policy leadership to the president rather than taking it upon itself. Presidents have asked Congress to pass laws to clean up air and water, amend the Constitution, create a national health care system, and declare war. A president with a strong personality can serve as the point person and carry out a vision for the country more easily than any or all of the 535 members of Congress.

Powers of Persuasion The president uses a number of skills to win support for a policy agenda. The president will use bargaining and persuasion in an

attempt to get Congress to agree with and pass the legislative agenda. President Trump's most notable bill to pass Congress in his first year was a major tax overhaul that reduced corporate taxes from 35 to 21 percent and changed federal income tax rates, lowering them, at least temporarily, for a vast majority of citizens. The Tax Cuts and Jobs Act passed only after Trump, a real estate developer, used his skills as a salesman to push for it. As *Politico* reported, "He has spent weeks wooing, prodding, cajoling and personally calling Republican lawmakers to pass sweeping tax legislation in time for Christmas." He closed on this tax bill as he would have closed a real estate deal decades ago, with a hard and convincing sell. Using his informal political powers, Trump personally called the wavering members of the Senate. The White House organized a speech and presentation, showcasing how the changes would impact some average families, personalizing the promises of the bill.

Veto The president has the final stamp of approval of congressional bills and also a chance to reject them with the executive **veto**. After a bill passes both the House and the Senate, the president has ten days (not including Sundays) to sign it into law. If vetoed, "He shall return it," the Constitution states, "with his objections to the House in which it shall have originated." This provision creates a dialogue between the two branches, enables Congress to consider the president's critique, and encourages consensus policies.

At times, a president will threaten a veto, exercising an informal power that may supersede the formal process. When disagreements between the president and his party or the majority of Congress over the details of a new law exist, the president may threaten to veto, conditionally, if the bill is not satisfactory. Congressional proponents of a bill will work cooperatively to pass it, reshaping it if necessary, to avoid the veto.

The use of the veto has fluctuated throughout presidential history. When there is a divided government—one party dominating Congress and another controlling the presidency—there is usually a corresponding increase in vetoes. The last three presidents, at times, each served with divided governments during their eight years as president. Democrat Bill Clinton had 37 vetoes; Republican George W. Bush and Democrat Barack Obama each had 12.

The president can opt to neither sign nor veto. Any bill not signed or vetoed becomes law after the ten-day period. However, if a president receives a bill in the final ten days of a congressional session and does nothing, this **pocket veto** allows the bill to die.

Congress can override a presidential veto if two-thirds of each house approves the bill. Reaching the two-thirds threshold is very challenging and fewer than 10 percent of a president's vetoes are overridden. (See Topic 1.6 for more on overriding vetoes.)



THINK AS A POLITICAL SCIENTIST: DESCRIBE TRENDS IN DATA

Data and statistics are valuable tools to political scientists. Studying trends in data over time helps political scientists understand how events and ideas affect individuals and institutions. This “big picture” view can help interpret the success of politicians and their actions. For example, U.S. presidents are granted the power of signing a bill into law or vetoing a bill. A president who uses the veto infrequently is often viewed as a successful executive because policy goals are accomplished easily. Conversely, a president who vetoes many bills can be regarded as less successful and might have difficulty implementing his policy goals. Does the number of vetoes used by a president show trends in individual success or success for the nation?

Practice: Study the table below, which shows trends in presidential vetoes at different times in the nation’s history. Then, offer one reason why those trends might have varied so greatly.

NUMBERS AND TYPES OF VETOES OF SELECTED PRESIDENTS					
Congressional session	President	Years	Vetoes	Pocket vetoes	Divided government (chamber with the majority party opposite the president and number of years)
47 th –48 th	Chester Arthur (R)	1881–1885	4	1	House—2 years
49 th –50 th	Grover Cleveland (D)	1885–1889	304	2	House—4 years
51 st –52 nd	Benjamin Harrison (R)	1889–1893	19	1	House—2 years
71 st –72 nd	Herbert Hoover (R)	1929–1933	21	3	No
73 rd –79 th	Franklin Roosevelt (D)	1933–1945	372	9	No
83 rd –86 th	Dwight Eisenhower (R)	1953–1961	73	2	Both chambers—6 years
87 th –88 th	John Kennedy (D)	1961–1963	12	0	No

Source: House of Representatives

Line-Item Veto Since the founding, presidents have argued for the right to a line-item veto. This measure would empower an executive to eliminate a line of spending from an appropriations bill or a budgeting measure, allowing the president to veto part, but not all, of the bill. Many state governors have the line-item veto power. In 1996, Congress granted this power to the president for appropriations, or new direct spending, and limited tax benefits. Unlike a Congress member, the president has no loyalties to a particular congressional district and can thus sometimes make politically difficult local spending cuts without concern for losing much regional or national support.

Under the new act, President Clinton cut proposed federal monies earmarked for New York City. The city sued, arguing that the Constitution gave Congress the power of the purse as an enumerated congressional power, and New York City believed this new law suddenly shifted that power to the president. The Court agreed that the only way to give the president this power would be through a constitutional amendment and struck down the act in *Clinton v. City of New York* (1998). Presidents and fiscal conservatives continue to call for a line-item veto to reduce spending. There is little doubt that such power would reduce at least some federal spending. However, few lawmakers (who can currently send pork barrel funds to their own districts) are willing to provide the president with the authority to take away that perk.

Commander in Chief

The framers named the president the **Commander in Chief** with much control over the military. The Constitution, however, left the decision of declaring war solely to the Congress. The question of what constitutes a war, though, is not always clear.

Senator Barry Goldwater proclaimed in the waning days of the Vietnam conflict, “We have only been in five declared wars out of over 150 that we have fought.” His point was fair, although his estimate was debatable. The issue remains: Should all troop landings be considered wars that therefore require congressional declarations?

When a military operation is defensive, in response to a threat to or attack on the United States, the executive can act quickly. FDR ordered U.S. troops to Greenland in 1940 after the Nazis marched into Denmark but before any U.S. declaration of war. President Clinton bombed Iraq after discovering the failed assassination attempt on his predecessor, the elder President Bush. President Obama authorized the U.S. mission in 2011 to capture or kill Osama bin Laden, the al-Qaeda founder responsible for the September 11, 2001, attacks. A U.S. Navy Seal team was on the ground in Pakistan for only about 40 minutes. Some believe that actions such as these stretch the meaning of “defensive” too far. Yet how successful would this mission have been if Congress had to debate publicly and vote in advance on whether or not to invade the unwilling country that harbored bin Laden?

The Cold War era greatly expanded the president’s authority as Commander in Chief. In the early 1960s, one senator conceded that the president must have

some war powers because “the difference between safety and cataclysm can be a matter of hours or even minutes.” The theory of a strong defense against “imminent” attack has obliterated the framers’ distinction and has added an elastic theory of defensive war to the president’s arsenal. Imminent-defense theorists argue the world was much larger in 1789, considering warfare, weaponry, and the United States’ position in the world. Today, with so many U.S. interests abroad, an attack on American interests or an ally far from U.S. shores can directly and immediately impact national security.

Chief Diplomat

Through treaties, presidents can facilitate trade, provide for mutual defense, help set international environmental standards, or prevent weapons testing, as long as the Senate approves. President Woodrow Wilson wanted the United States to join the League of Nations after World War I, but the Senate refused to ratify Wilson’s Treaty of Versailles.

An **executive agreement** resembles a treaty yet does not require the Senate’s two-thirds vote. It is a simple contract between two heads of state: the president and a prime minister, king, or president of another nation. Like any agreement, such a contract is only as binding as each side’s ability and willingness to fulfill the promise. To carry it out, a president will likely need cooperation from other people and institutions in the government. These compacts cannot violate prior treaties or congressional acts, and they are not binding on successive presidents.

Presidents have come to appreciate the power of the executive agreement. President Washington found conferring with the Senate during each step of a delicate negotiation extremely cumbersome and perhaps dangerous. It compromised confidentiality and created delays.

Executive agreements can ensure secrecy or speed or avoid ego clashes in the Senate. During the Cuban Missile Crisis in October 1962, President Kennedy discovered the Soviet Union’s plan to install nuclear missiles in Cuba. Intelligence reports estimated these weapons would be operational within two weeks. After days of contemplation, negotiation, and a naval standoff in the Caribbean, the United States and the Soviet Union made a deal. The agreement stated that the Soviets would remove their offensive missiles from Cuba if the United States would later remove its own missiles from Turkey. Had Kennedy relied on two-thirds of the Senate to help him solve the crisis, a different outcome could very well have occurred. Time, strong words on the Senate floor, or an ultimate refusal could have drastically reversed this historic outcome.

Executive Powers and Policy—The Panama Canal

The policies of two presidents regarding the Panama Canal show two very different ways of using the powers of the executive branch to advance a policy agenda and interact with Congress.

Acquiring the Panama Canal Zone “Speak softly and carry a big stick.” These words of President Theodore Roosevelt describe his foreign policy in relation to Latin America, where he wanted to assert U.S. power. However, the words might also describe his approach to Congress.

Shortly after becoming President, Roosevelt spoke to Congress about the importance of linking the Atlantic and Pacific Oceans to shorten trade routes with a canal through Panama. Using his powers of persuasion, Roosevelt convinced the Senate to pass a treaty to acquire the canal zone from Colombia, but the government of Columbia balked.

Panamanians had long wanted their independence from Colombia and struck a deal with the United States. If American forces supported Panamanian independence, the new government would sell the land to the United States to build a canal. Leaders of American business interests in the area offered bribes to Panamanian officials to let the rebellion prevail, and Roosevelt sent the *USS Nashville* to the region in a show of rebel support, an example of Roosevelt’s so-called “gunboat diplomacy.” Colombia agreed to grant independence to Panama. Soon after, the Canal Zone was sold to the United States.

Some in the United States saw Roosevelt’s participation in the rebellion as an act of piracy or worse. But Roosevelt defended his actions and use of executive powers, saying years later, “If I had followed traditional, conservative methods, I should have submitted a dignified state paper of probably two hundred pages to Congress, and the debate would have been going on yet. But I took the Canal Zone, and let Congress debate, and while the debate goes on, the Canal does also!” The treaty was finally ratified in 1904; the canal opened in 1914.

Returning the Canal Zone to Panama The canal cut Panama into two sections, with the Canal Zone under the control of the United States. Over time, the continued involvement of the United States strained relations between the two nations. Only after decades of conflict did the United States soften its “big stick” policy and support more democracy in the region.

Panama’s desire to fly its flag over the Canal Zone had long been a source of tension. On January 9, 1964, violence erupted when the only Panamanian flag flying in the Canal Zone was torn. A number of protesting students overwhelmed Canal Zone police, and U.S. troops were brought in. Twenty Panamanians were killed. In Panama, that day has since become known as Martyrs Day. Panama broke off diplomatic relations with the United States and demanded a new treaty.

When Jimmy Carter became president (1977–1981), he articulated his approach to foreign policy with an emphasis on morality. “Our policy is based on a historical vision of America’s role. . . . Our policy is rooted in our moral values, which never change. . . . Our policy is designed to serve [hu]mankind.”

Returning the Canal Zone to Panamanian control was high on Carter’s list of foreign policy objectives for several reasons. First, he saw the control of the Canal Zone as a holdover from an imperial past and wanted to remove any symbolic representation of imperialism, believing it affected U.S. relations with

all Latin American countries. Also, he believed it was the moral responsibility of the United States to respect the complete self-governance of Panama.

Carter set in motion a carefully planned effort to win support in Congress for the return of the Canal Zone to Panama, relying on powers of persuasion and personal relationships to achieve his goals. Specifically, he and his legislative team provided extensive briefings and education to members of Congress and sent them to the region to gather information firsthand, and Carter got personally involved in discussions. His team was also meticulous about learning exactly which lawmakers' votes they could count on and which votes they needed to nurture. They developed an extensive public relations campaign to educate the American people on the issue and made visits to congressional districts where pressure from constituents might sway a member's vote.

Carter's patient diplomacy with Congress paid off. In 1978, new agreements that guaranteed the U.S. military protection of the canal to assure fair and full passage and also formally returned full sovereignty to Panama over the Canal Zone beginning on December 31, 1999, were ratified by a Senate vote of 68-32.

Chief Executive and Administrator

How the president and his appointees enforce or implement a new law will shape the administration's policy agenda. Using executive orders, signing statements, and running the machinery of the vast executive branch mark how a president carries out the powers and functions as the chief executive. The Supreme Court has defined some of the gray areas of presidential power. For example, the president can fire most Senate-approved subordinates without cause.

Executive Orders An **executive order** empowers the president to carry out the law or to administer the government. Unlike a criminal law or monetary appropriation, which requires Congress to act, a presidential directive falls within executive authority. For example, the president can define how the military and other departments operate.

Executive orders have the effect of law and address issues ranging from security clearances for government employees to smoking in the federal workplace. In 1942, for example, President Franklin Roosevelt (FDR) issued the infamous Executive Order 9066, which allowed persons identified by the secretary of war to be excluded from certain areas. This executive order resulted in the internment of Japanese Americans during World War II. In 1948, through an executive order, President Harry Truman directed the military to racially integrate. Recently, President Donald Trump issued an executive order outlining an immigration policy that limited travelers entering the United States from six countries with Muslim-majority populations. Executive orders cannot address matters under exclusive congressional jurisdiction, such as altering the tax code, creating new interstate commerce regulations, or redesigning the currency. Executive orders can also be challenged in court. The Supreme Court upheld both FDR's wartime internment and Trump's travel ban.

Signing Statements Though the president cannot change the wording of a bill, several presidents have offered **signing statements** when signing a bill into law. These statements explain their interpretation of a bill, their understanding of what is expected of them to carry it out, or just a commentary on the law. A signing statement allows a president to say, in effect, “Here’s how I understand what I’m signing and here’s how I plan to enforce it.” Critics of the signing statement argue that it violates the basic lawmaking design and overly enhances a president’s last-minute input on a bill.

Executive Privilege Starting with George Washington’s precedent, presidents have asserted **executive privilege**, the right to withhold information or their decision-making process from another branch, especially Congress. They have particularly asserted that they need not make public any advice they received from their subordinates to protect confidentiality. Presidents have also claimed that such information is privileged, protected by the separation of powers.

President Richard Nixon tested executive privilege during the Watergate scandal when Nixon and others were accused of covering up criminal actions against political rivals. Nixon refused to turn over investigator-subpoenaed tapes, alleged to reveal the president’s knowledge of the 1972 break-in at the Watergate Office Building to steal information about the Democratic Party. Nixon declared his secretly recorded conversations were protected from congressional inquiry by executive privilege. In *U.S. v. Nixon* (1974), the Supreme Court did acknowledge that executive privilege is constitutional and necessary at times. Yet the Court unanimously agreed the tapes amounted to evidence in a criminal investigation and therefore were *not* protected by executive privilege. Nixon turned over the recordings.

REFLECT ON THE ESSENTIAL QUESTION

Essential Question: *How can a president can implement policy agenda?*
On separate paper, complete a chart like the one below.

Power Granted to the President	Example in Implementing Policy Agenda

KEY TERMS AND NAMES

bargaining and persuasion	informal powers
Commander in Chief	line-item veto
formal powers	pocket veto
executive agreement	policy agenda
executive order	signing statements
executive privilege	veto

Checks on the Presidency

“It is important, likewise, that the habits of thinking in a free Country should inspire caution in those entrusted with its administration, to confine themselves within their respective Constitutional spheres; avoiding in the exercise of the Powers of one department to encroach upon another.”

—George Washington, Farewell Address, 1796

Essential Question: How could the president’s agenda contribute to confrontations with Congress?

The president’s formal powers enable him to appoint a team to execute the laws and to accomplish his policy agenda. Some of those administrators hold positions Congress created in 1789. Many more subordinate positions exist because Congress has since created them or has allotted funds for offices to support the president. A typical president will appoint thousands of executive branch officials during their tenure. Atop that list are the Cabinet officials, then agency directors, military leaders and commissioned officers, and the support staff that work directly for the president. Most of these employees serve at the pleasure of the president, and some are kept on when a new president is elected. Other positions are protected by statute or Supreme Court decisions.

The President’s Team

The president is faced with countless decisions each day and many of those decisions have exceptionally important consequences to the fate of the nation. A large team is needed to assist the president in making these decisions. Article II, Section 2, of the Constitution gives the president the power to assemble that group and “. . . appoint ambassadors, other public ministers and consuls . . . and all other officers of the United States whose appointments are not herein otherwise provided for and which shall be established by law.”

The Vice President

A political party’s presidential nominee, in consultation with the party, selects a vice president before the election. Many assume the vice president is the second most powerful governmental officer in the United States, but in reality, the vice president is an assistant to the president with little influence and a largely undefined job description. Different presidents have given their vice presidents differing degrees of authority and assigned them different roles.

The Constitution names the vice president as the president of the Senate and declares that in case of presidential removal, death, resignation, or inability, the president's duties and powers "shall devolve on the vice president."

Shaping and Supporting Policy In recent years, the position has been especially influential on presidential policy. Many believed George W. Bush's vice president Dick Cheney, a hawkish former defense secretary, was overly influential. He promoted a tough stance on terrorists and also toward nations that harbor them. He pushed for the 2003 invasion of Iraq in search of "weapons of mass destruction" but none were found.

Vice President Joe Biden, serving under Obama, sustained his high influence for eight years. Obama assigned several policy goals to the affable former senator who had served in Washington since the early 1970s. Biden focused on concluding the mission in Iraq and gained budget deals with Republican congressional leaders. Biden was the point man on other foreign policy matters. The president gave "Uncle Joe" a presidential medal of freedom and called him "the best vice president America has ever had."

In 2020, after the global coronavirus pandemic upended life around the world and cost thousands of people their lives, President Trump appointed his vice president, Mike Pence, to coordinate the nation's response. Pence called upon the globally recognized expert on infectious disease Dr. Dorothy Birx to recommend policy based on scientific predictions of how the disease would spread.

The Cabinet and Bureaucracy

Article II alludes to a **Cabinet** when it mentions "the principal officers in each of the executive departments." Today, 15 Cabinet secretaries, such as the secretary of defense and secretary of transportation, advise the president, but they spend even more time running large governmental departments that take care of a wide range of national concerns. Presidents can add additional members to the Cabinet. President Trump has included the vice president, his chief of staff, and seven others beyond the 15 department heads in this formal group.

Secretaries When appointing Cabinet secretaries, modern presidents create some balance based on geography, gender, ethnicity, and even partisan ideology. Presidents have found showcasing minority appointments and stocking their team with a visible, diverse staff to be in the interest of accomplishing their agendas.

Franklin Roosevelt (1933–1945) appointed the first woman to the Cabinet, Secretary of Labor Francis Perkins, and Lyndon Johnson (1963–1969) appointed the first African American, Secretary of Housing and Urban Development Robert Weaver. This tokenism—or mainly symbolic appointment of a small number of underrepresented groups to give the impression of diversity—continued until President Jimmy Carter appointed substantial numbers of African Americans and women to his senior executive positions—16 percent women and 11 percent ethnic minorities. The Cabinet has since included Latinos, Asian Americans, and nontraditional appointees to Cabinet positions, and 53 percent of Obama's first-term Cabinet appointees were either women or minorities.



Source: Lyndon Baines Johnson Library and Museum

Robert Clifton Weaver, first Secretary of Housing and Urban Development and first African American Cabinet appointee who served from 1966–1968 under President Lyndon Johnson.

State Department The first department Congress created in 1789 was the Department of State, headed by Thomas Jefferson. Its role is to promote foreign policy of the United States across the globe. The State Department is the president's main diplomatic body. Deputy secretaries oversee U.S. relations in designated regions or continents. For each nation that the United States recognizes (nearly every nation in the world), the State Department operates an embassy in that country and employs an **ambassador**, a top diplomat appointed to represent the United States with that foreign nation. That country will likely have an embassy in Washington. About two-thirds of U.S. ambassadors come from careers in foreign affairs or are international experts. About one-third are political appointees—former senators, political friends, or well-known Americans to impress the host country.

Defense Department The Defense Department is headquartered at the Pentagon, just outside the nation's capital. Secretaries of defense are civilian officers who serve the president and have not served in the uniformed military service for at least seven years. The Constitution and U.S. tradition dictate that the military leadership and policymaking apparatus be distinct and separate from the uniformed divisions that carry out military missions. Ultimately, the people run the military through their elected and constitutional civil officers, in contrast to many dictatorships. Dictatorships, lacking constitutional protections, come into being when a strong military leader takes over the military first and the government second.

The Defense Department includes the Army, Navy, Air Force, and Marines—all of the nation's military branches under one command. The **Joint Chiefs of Staff**, a council of the top uniformed officials from each division, advises the president on military strategy. Defense comprises about one-fifth of

the overall federal budget and the largest portion of the nation's discretionary spending.

Federal Agencies Federal agencies are subcabinet entities that carry out specific government functions. Many fall under larger departments. The Federal Bureau of Investigation (FBI)—a crime fighting organization—falls under the Justice Department. The Coast Guard falls under the Department of Homeland Security. Other agencies include the Food and Drug Administration (FDA), the Internal Revenue Service (IRS), the Central Intelligence Agency (CIA), and the Postal Service. Thousands of people in Washington and across the country staff these few hundred executive branch agencies. They carry out laws Congress has passed with funds Congress has allotted.

President's Immediate Staff

In 2008, 74 separate policy offices and 6,574 total employees worked for the president (most not working in the White House). Ideally, all of the offices and agencies play a part in implementing the president's policy goals.

The Executive Office of the President (EOP) operates within walking distance of the White House. It coordinates several independent agencies that carry out presidential duties and handle the budget, the economy, and staffing across the bureaucracy. Created in 1939 when FDR needed an expanded presidential staff, the EOP now includes the Office of Management and Budget, the Central Intelligence Agency, the Council of Economic Advisers, and other agencies.

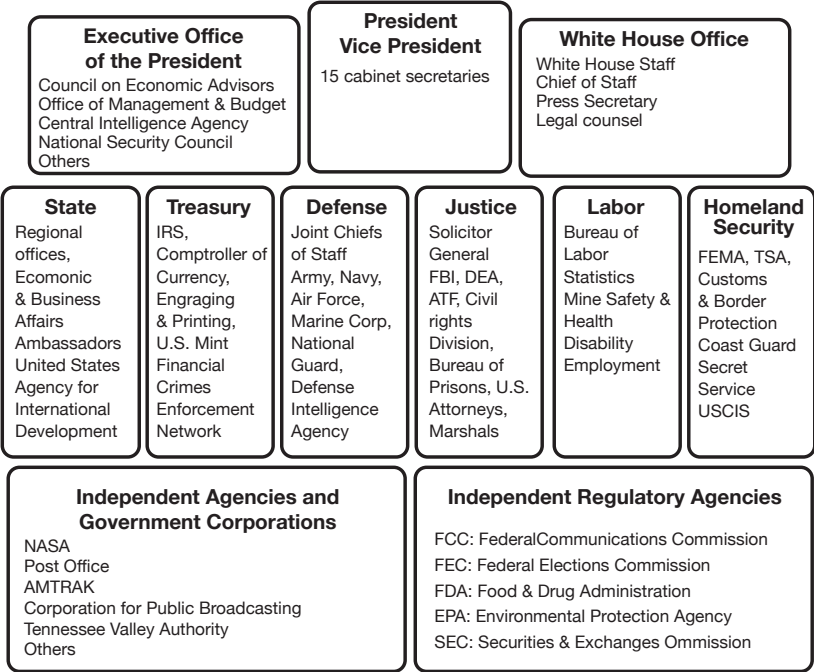
White House Staff The president's immediate staff of specialists make up the White House Office. These staffers require no Senate approval and tend to come from the president's inner circle or campaign team. They generally operate in the West Wing of the building. Presidents sometimes come to rely on their White House staffs more than their Cabinet or agency heads because staff members serve the president directly. Unlike secretaries, they do not have loyalties to departments or agencies and do not compete for funding. The staff interacts and travels with the president daily and many staffers have worked with prior presidents. A staffer's individual relationship with and access to the president will determine his or her influence.

In the 1950s, President Eisenhower's **chief of staff** became his gatekeeper, responsible for the smooth operation of the White House and the swift and accurate flow of business, paper, and information. Though the chief of staff has no official policymaking power, a president seeks the chief of staff's opinion on many issues, giving the position a great deal of influence. Chiefs of staff tend to be tough, punctual, detail-oriented managers, and these qualities allow the president to concentrate on big-picture decisions.

The remainder of the president's inner circle includes the top communicator to the people, the White House press secretary; the president's chief legal counsel; and his national security adviser. The national security adviser coordinates information coming to the president from the CIA, the military,

and the State Department to assess any security threat to the United States. This person heads the National Security Council that includes the president, secretaries of defense and state, top intelligence and uniformed military leaders, and a few others.

Selected Cabinet Level Departments and Agencies



Interactions with Other Branches

Since Congress writes most law, holds the federal purse, and confirms presidential appointments, presidents must stay in good graces with representatives and senators. The president's agenda is not always Congress's agenda, however, and tensions often arise between the branches. As chief legislator, the president directs the Office of Legislative Affairs to draft bills and assist the legislative process. (See Topic 2.2.) Sometimes the aides employ techniques to push public opinion in a lawmaker's home district in the direction of a desired presidential policy so that the lawmaker's constituency can apply pressure. As the president enforces or administers the law, the courts determine if laws are broken, misapplied, or unjust. For these reasons, a president regularly interacts with the legislative and judicial branches.

Checks on Presidential Powers

The framers took seriously the concerns of the Anti-Federalists and included specific roles and several provisions to limit the powers of the future strong, singular leader.

The Senate has the power to provide advice and consent on appointments, for example, and the presidential salary is set by Congress and cannot increase or decrease during the elected term. The framers also expressly made the president subject to impeachment. (See Topic 1.6.)

While some presidential powers, such as serving as Commander in Chief, appointing judges and ambassadors, and vetoing legislation, are explicit, presidents and scholars have argued about the gray areas of a president's job description. Most presidents have claimed **inherent powers**, those that may not be explicitly listed but are nonetheless within the jurisdiction of the executive. This debate has taken place during nearly every administration when an emergency has arisen or when the Constitution doesn't specifically address an emerging issue. Presidents have fought battles for expanded powers, winning some and losing others. The debate continues today.

The Senate and Presidential Appointees

In addition to the more visible Cabinet appointees, a president will appoint approximately 65,000 military leaders and about 2,000 civilian officials per two-year congressional term, most of whom are confirmed routinely, often approved *en bloc*, hundreds at a time. Occasionally, high-level appointees are subjected to Senate investigation and public hearing. Most are still approved, while a few will receive intense scrutiny and media attention, and some appointments will fail.

Because the founders did not anticipate that Congress would convene as frequently as it does in modern times, they provided for *recess appointments*. If the Senate is not in session when a vacancy arises, the president can appoint a replacement who will serve until the Senate reconvenes and votes on that official. This recess appointment is particularly necessary if the appointee is to handle urgent or sensitive work. This situation is rare, especially when the government is divided. Often a *pro forma*, or “in form only,” session will be called to ensure the Senate technically remains in session. These sessions often last only a few minutes.

The Senate invariably accepts presidential Cabinet nominations. The upper house swiftly confirmed every Cabinet-level secretary until 1834, when it rejected Andrew Jackson's appointee, Roger Taney, as secretary of the treasury over Taney's opposition to a national bank. The makeup of the Senate changed with the next election and Jackson appointed Taney as chief justice of the Supreme Court, who was confirmed for the position by a slim margin. To date, the Senate has rejected, by vote, only nine department secretaries.

The Senate usually accepts Cabinet appointees based on the reasoning that since the president won a democratic election, he should therefore have the prerogative of shaping the administration. Presidents commonly choose

senators to move over to the executive branch and serve in their Cabinet. In recent years, the president has selected one or more members of the opposite party. President Obama named three Republicans to serve as secretaries (though one declined the offer). Presidents and their transition teams do a considerable amount of vetting of potential nominees and connecting with senators to evaluate their chances before making official nominations. Though only nine nominations have been rejected by vote, 13 Cabinet appointees withdrew before the Senate voted. Additional names have been floated among senators, but they didn't receive the support to justify the official nomination.

Senate Standoffs The two most recent standoffs on Cabinet appointments came in 1989 and in 2017. President George H. W. Bush named former Senator John Tower as secretary of defense, and President Donald J. Trump nominated Betsy DeVos as secretary of education. Senator Tower had served in the Senate since Lyndon Johnson vacated the seat to become vice-president. Tower had the resume and experience to serve as defense secretary. He served in World War II and later as the chairman of the Senate Armed Services Committee. Upon his nomination, even Democratic Party leaders anticipated his nomination would sail through. However, allegations of heavy drinking and “womanizing” surfaced. Additionally, Tower owned stock in corporations with potential future defense contracts, an obvious conflict of interest. President Bush stuck by his former congressional colleague (Bush had represented Texas in the House). In the end, the Senate voted Tower down 53 to 47.

In 2017, President Trump nominated Betsy DeVos as education secretary. Like some conservatives, she held interest in privatizing education and, if confirmed, she would pursue that agenda goal. Despite DeVos advocating for private schools for many years before her nomination, she had never worked in public schooling in any capacity, including as a teacher, and along with her billionaire husband she had invested in for-profit charter schools and pushed for online education. The educational community was generally against her nomination, with some exceptions. At her public confirmation hearing, many senators expressed concern about her priorities, her experience, and her high-dollar donations to Republican candidates. As she fielded questions before the Senate committee, her competence in the field seemed shaky. Exchanges on school choice, guns in schools, students with disabilities, and private or online school accountability raised eyebrows on Capitol Hill and in news reports that followed. In the end, two Republican senators voted against her, leaving the Senate in a dead tie. Vice President Pence's tie-breaking vote made DeVos the secretary of education.

Ambassador Appointments The Senate is also likely to confirm ambassador appointments, although those positions are often awarded to people who helped fund the president's campaign rather than people well qualified for the job. On one of the “Nixon Tapes” from 1971, Nixon tells his chief of staff that “anybody who wants to be an ambassador must at least give \$250,000.” About 30 percent of ambassadors are political appointees. Some may have little or no experience to qualify them, though they are rarely rejected by the Senate.

Hotel magnate George Tsunis, appointed by President Obama as ambassador to Norway, was questioned critically by Senator John McCain (R-AZ) in 2014 and shown to have limited understanding of Norwegian political issues; he withdrew his nomination after a year when confirmation seemed unlikely. Trump's ambassador to the European Union, Gordon Sondland, donated \$1,000,000 to Trump's inaugural fund.



THINK AS A POLITICAL SCIENTIST: EXPLAIN HOW POLITICAL PROCESSES APPLY TO DIFFERENT SCENARIOS

A political process enables the creation of public policy when public opinion and political institutions interact. For example, the Senate is the institution that ensures the worthiness of presidential appointments to various federal positions as a check on the executive branch. In addition to their individual opinions on nominees, senators have to consider the reaction of the public to those appointees. The approval or disapproval of presidential appointments can be an indicator of the opinion of the people of the United States on key issues at a point in the nation's history.

Practice: Read the summaries of Senate action on presidential nominees and answer the questions that follow.

Thurgood Marshall: Supreme Court, 1967. After having argued more than 30 cases before the Supreme Court as an attorney, he was approved by a vote of 69–11. He became the first African American to serve as a justice on the Court.

Sandra Day O'Connor: Supreme Court, 1981. Republican President Ronald Reagan nominated the conservative leaning O'Connor. Her confirmation hearing was the first televised and mostly dealt with the topic of abortion. O'Connor was unanimously approved and the first female to serve as a justice on the Court.

Robert Bork: Supreme Court, 1987. In one the most lopsided margins for a failed vote, 58–42, Bork was not approved by the Senate. Senators attacked Bork's belief that the Constitution had no right to privacy and subsequently was not guaranteed by federal actions. The American Civil Liberties Union (ACLU) and several women's groups expressed strong opposition to Bork's nomination.

John Tower: Secretary of Defense, 1989. President Bush's choice of Tower was met with strong congressional opposition, as he was believed to own stock in defense companies and therefore had a conflict of interest. There were also questions about his character as he was seen as a heavy drinker and womanizer. The Senate voted against Tower 53–47.

1. How would you characterize the approval of Thurgood Marshall, considering the state of race relations in the 1960s? (See Topic 3.10 for more on civil rights.)
2. How might the Supreme Court case of *Roe v. Wade* (1973) have influenced the nomination and approval of O'Connor? (See Topic 3.9 for more on *Roe v. Wade*.)
3. What can be inferred as a key issue of the 1980s from the failed appointments of Robert Bork and John Tower?

Removal The president can remove upper-level executive branch officials at will, except those that head independent regulatory agencies. (See Topic 2.13.) A president's power of removal has been the subject of debate since the writing of the Constitution. Alexander Hamilton argued that the Senate should, under its advice and consent power, have a role in the removal of appointed officials. James Madison, however, argued that to effectively administer the government the president must retain full control of subordinates. The Article II phrase that grants the president the power to "take care that the laws be faithfully executed" suggests the president has a hierarchical authority over secretaries, ambassadors, and other administrators. This issue brought Congress and the president to a major conflict in the aftermath of the Civil War. President Andrew Johnson dismissed Secretary of War Edwin Stanton, congressional Republicans argued, in violation of the Tenure of Office Act. This action led to Johnson's impeachment.

The question of removal resurfaced in 1926. The Supreme Court concluded that presidential appointees "serve at the pleasure of the president." The Court tightened this view a few years later when it looked at a case in which the president had fired a regulatory agency director. The Court ruled in that case that a president can dismiss the head of a regulatory bureau or commission but only upon showing cause, explaining the reason for the dismissal. The two decisions collectively define the president's authority: executive branch appointees serve at the pleasure of the president, except regulatory heads, whom the president can remove with explanation.

Judicial Interactions

Presidents interact with the judiciary in a few ways. As the head of the executive branch, presidents enforce judicial orders. For example, when the Supreme Court ruled in 1957 that Central High had to admit nine African American students into the school, President Eisenhower ordered the 101st Airborne Division into Little Rock, Arkansas, to ensure the school followed the court order. The branches also interact when courts check the executive if they find presidential action unconstitutional. For example, in 1952 the Supreme Court overturned President Truman's decision to nationalize steel industries during the Korean War. Truman had taken that step to mobilize resources for the Korean War and also to prevent a strike by steelworkers. The Court ruled, however, that the president lacked authority to seize private property.

In 2014, President Obama announced an executive order that would delay the deportation of millions of illegal immigrants. The order was met with strong opposition from Republicans. By the end of the year, 26 states, led by Texas, took legal action to stop Obama's plan. The case made it to the Supreme Court, and a 4-4 split affirmed a lower court injunction, ultimately blocking Obama's order. It was an eight-member Court due to the death of Justice Antonin Scalia.

Judicial Appointments A more frequent encounter of the two branches comes when presidents appoint federal judges. All federal judges serve for life terms, so only a fraction of the federal courts will have openings during

a president’s time in office. Yet presidents see this opportunity as a way to put like-minded men and women on federal benches across the country. Of course, like appointments in the executive branch, the Senate must approve these nominees.

While standoffs about Cabinet appointees are rare, judicial nominations are another story. Judges have greater influence of shaping the law and can serve for life, so there is more at stake. The president appoints scores of federal judges during each four-year term, because, in addition to the nine justices on the Supreme Court, nearly 1,000 federal judges serve the other federal courts. Throughout U.S. history, 30 Supreme Court nominees have been rejected by a Senate vote. Many other lower court nominees have also been rejected or delayed to the point of giving up on the job.

The interaction between the branches on these judicial nominees is complicated and sometimes contentious. Senate rules and traditions govern the process. Senators, especially those on the Judiciary Committee, expect to advise presidents on selecting these nominees and are sometimes slow to consent to the president’s choices. They, too, realize the longevity of a federal judge’s service. If the president appoints like-minded judges, senators on the opposite end of the ideological spectrum are unlikely to welcome the judges, since their future decisions could define controversial or unclear law.

A divided electorate has caused majority control of the Senate to shift from one party to the other, and the cloture motion has served a somewhat stabilizing function. (See Topic 2.2.) According to a 2013 decision, if a senator wants to block a judicial nomination with a filibuster, only a simple majority of senators would be required to prevent that.

REFLECT ON THE ESSENTIAL QUESTION

Essential Question: *How could the president’s agenda cause confrontations with Congress? On separate paper, complete a chart like the one below.*

Areas of Conflict Between the President and Congress	Examples of Conflict Between the President and Congress

KEY TERMS AND NAMES

ambassadors	inherent powers
Cabinet	Joint Chiefs of Staff
chief of staff	

Expansion of Presidential Power

“The imperial presidency, created by wars abroad, has made a bold bid for power at home.”

—Historian Arthur Schlesinger, *The Atlantic Monthly*, 1973

Essential Question: How have presidents interpreted and explained their use of formal and informal powers?

Since the creation of the office, United States citizens have come to expect more and more from the president. A constant push and pull on the office ultimately defines what a president can do. The framers set forth specific guidelines, yet presidents continue to challenge the constitutional framework. For example, not long after Donald J. Trump was sworn into office in January 2017, the debate about his powers intensified. As he tried to move his policy agenda forward, he met with resistance and tension from Congress, the courts, the media, and some protesting citizens. President Trump is not alone in facing resistance. Other presidents have also had conflicts as they increased the power of the office in their efforts to accomplish policy goals.

An Enhanced Presidency

The presidency is shaped by Article II, five constitutional amendments, federal law, Supreme Court decisions, customs, and precedents. This limited executive office was designed to carry out Congress’s policies. The office, however, has become a powerful captain’s ship of state, buoyed by support institutions and American expectation.

FOUNDATIONAL DOCUMENTS: *FEDERALIST NO. 70*

Critics of the proposed Constitution questioned Article II and the creation of the presidency. A single person in charge of the administration of government and the executive branch, the Anti-Federalists argued, would be dangerous. Twenty-five of the Federalists’ essays address Article II, and 42 different passages across the collection of these essays make points about the chief executive, presidential powers, term, relationship to the other branches, and the method of elections. In *Federalist No. 70*, Alexander Hamilton, writing as Publius, foreshadows the “ingredients” of the presidency and mainly focuses on the value of the unity in a single executive to avoid conflicts and to ensure accountability.

[The framers] have declared in favour of a single executive, and a numerous legislature. They have with great propriety, considered energy as the most necessary qualification of the former, and have regarded this as most applicable to power in a single hand . . . Wherever two or more persons are engaged in any common enterprise of pursuit, there is always danger of difference of opinion . . . And what is still worse, they might split the community into the most violent and irreconcilable factions, adhering differently to the different individuals who composed the Magistracy . . .

But the multiplication of the Executive adds to the difficulty of detection in either case. It often becomes impossible, amidst mutual accusations, to determine on whom the blame or the punishment of a pernicious measure, or series of pernicious measures, ought really to fall. It is shifted from one to another with so much dexterity, and under such plausible appearances, that the public opinion is left in suspense about the real author . . .

When power, therefore, is placed in the hands of so small a number of men, as to admit of their interests and views being easily combined in a common enterprise, by an artful leader, it becomes more liable to abuse, and more dangerous when abused, than if it be lodged in the hands of one man; who, from the very circumstance of his being alone, will be more narrowly watched and more readily suspected, and who cannot unite so great a mass of influence as when he is associated with others.

Political Science Disciplinary Practices: Analyze and interpret *Federalist No. 70*

When Publius wrote the Federalist articles, the authors were trying to convince those in the Anti-Federalist camp to support ratification of the Constitution. For this reason, the arguments Hamilton presented reflected the concerns of the Anti-Federalists, those who feared the “fetus of monarchy” because of their recent experience with the British monarch. With this in mind, consider the perspective of each side of the debate.

Apply: Complete the activities below.

1. Describe the authors’ central claim about a chief executive.
2. Explain how the authors’ argument for that claim ensures a better government.
3. Explain how the implications of the authors’ argument may affect the behavior of the chief executive.

Presidential Interpretation of Power

The presidential role has been shaped as unforeseen situations and events occurred during the nation’s history. Several key presidents have had larger roles in defining the powers of the chief executive.

Washington’s Example For first President George Washington, the Constitution provided a mere five-paragraph job description. He took on the role with modesty and accepted being addressed as “Mr. President” as a title, though some suggested more lofty labels.

Washington had some key accomplishments, primarily instilling public confidence in the nation’s constitutional experiment. Though he surely would have won a third term, Washington chose to leave government after his second

term to allow others to serve and to allay any fears of an overbearing executive. The presidents who followed Washington had moments of questionable initiative and international confrontation, but most of the early presidents faithfully carried out congressional acts, exercised the veto minimally, and followed Washington's precedent to serve no more than two terms. Thomas Jefferson purchased the Louisiana Territory without congressional approval. James Madison marshaled the Congress to a second war against Great Britain. James Monroe established the Monroe Doctrine, a foreign policy assuring U.S. dominance in the Western Hemisphere. For the most part, however, these powerful men let Congress fill its role as the main policymaking institution while the presidents executed Congress's laws.

The Imperial Presidency

Yielding to Congress, however, began to fade as stronger presidents came to office. The president's strength relative to that of Congress has grown steadily, with occasional setbacks, to create a kind of **imperial presidency**, a powerful executive position guided by a weaker Congress. *Webster's Dictionary* defines an imperial presidency as "a U.S. presidency that is characterized by greater powers than the Constitution allows." Historian Arthur Schlesinger Jr. popularized the term with his 1973 book of the same name. The book was published at the pinnacle of an overreaching Nixon presidency.

Enlightenment philosopher John Locke argued that legislative bodies are slow to respond in emergencies, so an executive should be occasionally allowed expanded powers. War, economic problems, and domestic crises have raised expectations for strong leadership.



Source: Library of Congress

President Andrew Jackson's critics often questioned if he had stepped outside his authority. What symbols does the cartoonist use to signal this accusation? What is at Jackson's feet? What does he hold in his hand?

Personality and Popularity The dominating personality and popularity of the headstrong **Andrew Jackson** (1829–1837) brought about a noticeable shift in presidential power. Jackson was a successful military general who had led the southern expedition that forcibly relocated the Native Americans. As president, he blazed a path of executive dominance. He used the veto 12 times, more than any president had before. Jackson's opposition to a national bank, combined with his forceful demeanor, created a rift between the president and other branches, while his popularity among farmers and workers in an age of expanded suffrage and increased political participation enhanced his power even more.

During the presidencies of chief executives who served after Jackson and before Abraham Lincoln, the powers of the presidency contracted. None of these eight presidents served more than one term, and two died in office. Franklin Pierce and James Buchanan, who preceded Lincoln, are noted for their lack of presidential leadership and clear policy agenda and for allowing the nation to drift toward civil war. Historians rank Buchanan and Pierce near the bottom of the list of effective presidents.

National Crisis After Southern states seceded, **Abraham Lincoln** (1861–1865) once again expanded the presidency as he assumed sweeping presidential powers to save the Union and to limit slavery. Lincoln went as far as suspending *habeas corpus*, the protection against unlawful imprisonment, over fears that riots in Maryland might interrupt Union troop movement. Chief Justice Roger Taney issued an opinion that only Congress could suspend habeas corpus but had little power to enforce his views during the crisis of the Civil War. Historian Arthur Schlesinger wrote, “Lincoln ignored one constitutional provision after another. He assembled the militia, enlarged the Army and Navy beyond the congressional appropriation, suspended habeas corpus, arrested ‘disloyal’ people, asserted the right to proclaim martial law behind the lines, to arrest people without warrant, to seize property, and to suppress newspapers.” Lincoln is generally excused for these constitutional violations because he stretched the powers of his office in the name of saving the United States and emancipating slaves.

On the World Stage In the late 1800s, the United States began to compete on an international stage with the industrial and imperial powers of Europe. For example, to protect U.S. “open door” trade interest in China, President William McKinley sent 5,000 American troops to end the Boxer Rebellion.

As the United States became a world military and industrial power, **Theodore Roosevelt** (1901–1909) and **Woodrow Wilson** (1913–1921) stretched presidential power in the name of advancing the nation and serving the people. Roosevelt's gallant Rough Rider background from the Spanish-American War and his brash, forward manner gained people's respect. His progressive actions for environmental conservation and standing against corporate giants contributed greatly to both his reputation and his legacy. He strengthened the Monroe Doctrine with his foreign policy motto that the United States would “speak softly and carry a big stick.” During his tenure, he

sent troops to Cuba and the Philippines, and he sent the U.S. Navy around the world. He also acquired property from Panama to build a canal. (See Topic 2.4.)

Roosevelt's so-called **stewardship theory** approach to governing presumed the president had a duty to act in national interests, unless the action was clearly prohibited by the Constitution. Like a good steward, Roosevelt insisted, the president should exercise as much authority as possible to take care of the American people, as Lincoln had done before him. "I have used every ounce of power there was in the office," he wrote.

Democrat Woodrow Wilson (1913–1919) became a strong leader with an international voice. When he delivered his State of the Union report to the Congress, the first in-person address since John Adams, Wilson created for himself a platform from which to present and gain popularity for his ideas. His involvement in international affairs became inevitable as the United States entered World War I. "We can never hide our president again as a mere domestic officer," he wrote. "We can never again see him the mere executive he was in the [past]. He must stand always at the front of our affairs, and the office will be as big and as influential as the man who occupies it."

The Turning Point In a discussion of presidents who expanded the reach of the office, there is perhaps no better example than Theodore Roosevelt's cousin, **Franklin Delano Roosevelt** (FDR) (1933–1945). He became president during the Great Depression (1929–1941), the most severe economic crisis in history. The large coalition that rallied behind him included people from nearly every walk of life who had been harmed by the Depression. His New Deal programs promised to bring the nation out of despair.

FDR arrived in Washington with revolutionary ideas that fundamentally changed not only the role of the presidency but also the role of the whole federal government. He recommended and Congress passed laws that required employers to pay a minimum wage, created the Social Security system, and started a series of public works programs to stimulate the economy. In trying to prevent a conservative Supreme Court from striking down his self-described liberal legislation, he moved to increase the number of seats on the Court with plans to place judges favorable to his proposals on the bench (See Topic 2.10.) This "court packing" plan failed, but it illustrates Roosevelt's imperial tendencies. He ran for and won an unprecedented third term, in 1940, as the United States moved closer to entering World War II.

The foreign policy dilemma that resulted in war with Germany and Japan only strengthened FDR's leadership and America's reliance on him. As Roosevelt mobilized the nation for an overseas war, he overpowered civil liberties in the name of national security by authorizing the creation of "military areas" that paved the way for relocating Japanese Americans to internment camps. At the time, FDR acted as a wartime Commander in Chief, not as an administrator concerned about constitutional rights. What would have seemed autocratic in peacetime was largely accepted as an appropriate security measure during wartime. This action by Roosevelt was upheld by the Supreme Court in *Korematsu v. United States* (1944). Americans rallied behind their Commander in Chief and accepted most of his measures, electing him to a fourth term, although he died 82 days into it.



THINK AS A POLITICAL SCIENTIST: DESCRIBE THE AUTHOR'S CLAIM AND PERSPECTIVE

The author of a speech has a main point, or several points, intended to make an impression on an audience. In an argument, the main point is called a claim. President Franklin Roosevelt is considered one of the great persuasive and inspirational speakers in U.S. history. His messages were clearly delivered and resonated with many people. He used his exceptional skill in his many radio speeches as the United States addressed its worst financial crisis, the Great Depression, and prepared for another crisis, World War II. President Roosevelt used executive powers to their fullest to get the nation moving toward recovery from the Depression. He also used his gift for argument and persuasion to mobilize the nation to face the challenges ahead.

Practice: The following excerpt is from Franklin Roosevelt's 1941 State of the Union Address. Read the excerpt and answer the questions that follow.

... These are the simple, basic things that must never be lost sight of in the turmoil and unbelievable complexity of our modern world.

Many subjects connected with our social economy call for immediate improvement. As examples:

We should bring more citizens under the coverage of old-age pensions and unemployment insurance.

We should widen the opportunities for adequate medical care.

We should plan a better system by which persons deserving or needing gainful employment may obtain it.

I have called for personal sacrifice. I am assured of the willingness of almost all Americans to respond to that call.

If the Congress maintains these principles, the voters, putting patriotism ahead of pocketbooks, will give you their applause.

In the future days, which we seek to make secure, we look forward to a world founded upon four essential human freedoms.

The first is freedom of speech and expression—everywhere in the world.

The second is freedom of every person to worship God in his own way—everywhere in the world.

The third is freedom from want—which, translated into world terms, means economic understandings which will secure to every nation a healthy peacetime life for its inhabitants—everywhere in the world.

The fourth is freedom from fear—which, translated into world terms, means a world-wide reduction of armaments to such a point and in such a thorough fashion that no nation will be in a position to commit an act of physical aggression against any neighbor—anywhere in the world.

1. What is one claim Roosevelt makes in this speech?
2. What is FDR asking the American public to do?
3. Does Roosevelt's speech seem to be from the perspective, or point of view, of an "imperial president?" Explain your answer.
4. Is FDR acting within powers granted to the president in the Constitution?

The **Twenty-second Amendment**, however, ratified in 1951, prevents any president from serving more than two consecutive terms or a total of ten years. If a person becomes president by filling a vacancy, that person can still serve two consecutive terms—hence the ten-year limit.

Contemporary Expansion of Powers

In the post-World War II era, the presidency has grown even stronger. Cold War tensions, military engagements abroad, and greater expectations to protect Americans in the age of terrorism have further imperialized the American presidency.

War Powers Act President Johnson mobilized the U.S. Army into Southeast Asia in 1964. After reports of a naval skirmish off the coast of Vietnam in the Tonkin Gulf (which were later found to be untrue), Congress delegated power in times of war to the president with the Tonkin Gulf Resolution, allowing the president “to take all necessary measures to repel any armed attack against the forces of the United States to prevent further aggression.” Congressional leaders rushed through the resolution in a stampede of misinformation and misunderstanding. This rapid reaction to aggressive Communists led to a long and unpopular war.

In 1973, Congress decided to fix this political mistake and passed the **War Powers Act**. The law maintains the president’s need for urgent action and defense of the United States while preserving the war-declaring authority of Congress. The president can order the military into combat 48 hours before informing Congress. In turn, Congress can vote to approve or disapprove any presidential military action at any time, with the stipulation that the vote must take place within 60 days, or within 90 days if the Congress offers an extension.

The Commander in Chief’s authority often shifts with each president. In the recent war on terrorism, President Obama developed his own policy for targeting top al-Qaeda enemies and operatives. In certain situations, taking into account knowledge of their whereabouts and calculations of potential innocent victims, Obama gave the order as Commander in Chief to kill these leading terrorists. Scores were eliminated by armed drones.



Source: Wikimedia Commons, Pete Souza

President Obama and his staff await an update on the status of the raid by U.S. Special Forces on the compound of terrorist leader Osama bin Laden.

In 2020 President Trump used his power as Commander in Chief to continue the war on terror with a drone strike that killed top Iranian general, Qassem Soleimani. The Trump administration claimed Soleimani was responsible for the deaths of hundreds of U.S. soldiers and was planning an “imminent” attack; therefore, the president’s decision was in the interest of the security of the United States. The president did notify Congress within 48 hours of the strike in accordance with the War Powers Act. Yet some members of Congress decried the briefing as lacking in details about the killing and the plans to move forward, making it clear that any further military escalation with Iran would require congressional approval.

REFLECT ON THE ESSENTIAL QUESTION

Essential Question: *How have presidents interpreted and explained their use of formal and informal powers? On separate paper, complete a chart like the one below.*

Presidential Expansion of Power

Response to Expansion of Presidential Power

KEY TERMS AND NAMES

Federalist No. 70

imperial presidency

Jackson, Andrew

Lincoln, Abraham

Roosevelt, Franklin D.

Roosevelt, Theodore

stewardship theory

Twenty-second Amendment (1951)

Washington, George

War Powers Act (1973)

Wilson, Woodrow

Presidential Communication

“By the time he reached the presidency, Reagan had talked before so many audiences and cameras that they were both his friends.”

—Presidential Aide David Gergen, *Eyewitness to Power*, 2000

Essential Question: How has communication technology changed the president’s relationship with the American people and other branches?

The Constitution grants the president the power “to recommend” to Congress “such measures as he shall judge necessary and expedient,” meaning he can try to influence the legislative actions of Congress, especially from the perspective of the manager who would carry out such policies. How a president attempts to persuade the legislative branch and shape policy has changed dramatically over the life of the Constitution. In addition, the way the president communicates to the people of the United States has changed significantly.

Communicator in Chief

In a democracy, the president’s need to communicate with the citizenry and keep good relations with Americans is essential for success. Citizens must desire the president’s proposed bills and foreign policy plans. If not, they will pressure their representative or senator to vote against them. The executive branch must publicize its reasons and benefits for proposed legislation. Another function the president assumes, then, is “communicator in chief.” Meanwhile, a free press entitles citizen-journalists to tell their readers, listeners, and viewers about the government. Among the government entities they are most interested in is the executive branch and its head, the president.

Relationship with the Press

In the early 1900s, as national newspapers grew, Theodore Roosevelt developed a unique relationship with the press. He referred to the presidency as a **bully pulpit**—a prominent stage from where he could pitch ideas to the American people. With “bully,” he meant “excellent,” not aggressive or violent, persuasion. He could speak to the people using his powers of persuasion, and the people would in turn persuade Congress. He sometimes spoke with reporters while getting his morning shave. With his colorful remarks, unique ideas, and vibrant persona, Roosevelt always provided a good story. He and his Cabinet officials distributed speeches and photos to journalists to use in their reports, and he saved the richest

pieces of information for his favorite journalists. The media's attention on the president enhanced the power of the bully pulpit. Though he did not mean "bully" in the modern sense, his actions often had that persuasive effect on Congress.

Later in the 1930s, in efforts to gain support for his New Deal legislation, Theodore Roosevelt's cousin, Franklin Delano Roosevelt (FDR) used his informal powers of persuasion to ensure that Congress enacted the measures. FDR used the popular radio medium to address Americans during his "fireside chats." He reassured a worried populace and articulated his solutions in a persuasive way. After each "chat," letters from listeners flooded Congress to support the president's ideas.

State of the Union Address The Constitution requires the president to report to Congress from time to time on the state of the Union. The president explains the economic, military, and social state of the nation, proposes new policies, and explains how government programs are being administered. George Washington and John Adams drafted their first reports and delivered these in person as speeches. Thomas Jefferson broke that pattern, declaring a speech looked too much like a British monarch opening Parliament, so he delivered his report on paper only, a practice that endured for a century after that.

In 1913, Woodrow Wilson revived the speech approach, thus redefining the report as an event. Since then all presidents have followed suit, taking advantage of the opportunity through the expanding media to reach millions of Americans who listen on the radio, watch on television, or stream online. In late January or early February, both houses of Congress convene and receive the president, Cabinet, and the address. Presidents realize they can command a large audience and a few news cycles to follow. Carefully crafted speeches include statistics and sound bites that will help propel presidents' initiatives.



Source: National Archives and Records Administration

In this cartoon, Theodore Roosevelt, a master of communication and manipulating the bully pulpit, notices that President Woodrow Wilson's in-person State of the Union Address upstaged his use of the bully pulpit.



THINK AS A POLITICAL SCIENTIST: EXPLAIN HOW POLITICAL BEHAVIORS APPLY TO DIFFERENT SCENARIOS

Political behavior refers to the broad category of involvement in the political process by individuals or groups. This behavior can involve such actions as voting, participating in interest groups, and working for social change. A president can have a significant effect on the public's political behavior. Evolving media throughout the nation's history have given the president many more opportunities to communicate with the public. The changing media have also given citizens much more access to the president.

Practice: Read the excerpts from three presidents' speeches during various economic crises the nation experienced. Identify the political behavior the president is trying to encourage in each excerpt. Also, explain one similarity and one difference among these messages to the people of the United States.

1. James Madison, *State of the Union*, 1819—during the Panic of 1819:

"The great reduction in the price of the principal articles of domestic growth which has occurred during the present year, and the consequent fall in the price of labor, apparently so favorable to the success of domestic manufactures, have not shielded them against other causes adverse to their prosperity. . . . It is deemed of great importance to give encouragement to our domestic manufacturers. In what manner the evils which have been adverted to may be remedied, and how far it may be practicable in other respects to afford to them further encouragement, paying due regard to the other great interests of the nation, is submitted to the wisdom of Congress."

2. Franklin Roosevelt, *first Fireside Chat*, 1933—during the Great Depression:

"After all, there is an element in the readjustment of our financial system more important than currency, more important than gold, and that is the confidence of the people themselves. Confidence and courage are the essentials of success in carrying out our plan. You people must have faith; you must not be stampeded by rumors or guesses. Let us unite in banishing fear. We have provided the machinery to restore our financial system; and it is up to you to support and make it work."

3. Ronald Reagan, *Address to the Nation on Federal Tax Reduction*, 1981—during recession and high inflation of the early 1980s.

"It's been nearly 6 months since I first reported to you on the state of the nation's economy. I'm afraid my message that night was grim and disturbing. I remember telling you we were in the worst economic mess since the Great Depression. . . . all because government was too big and spent too much of our money. . . ."

"Our struggle for nationhood, our unrelenting fight for freedom, our very existence. . . no one can stop you from reaching higher or take from you the creativity that has made America the envy of mankind"

"One road is timid and fearful; the other bold and hopeful. . . ."

"It's been the power of millions of people like you who have determined that we will make America great again. You have made the difference up to now. You will make the difference again. Let us not stop now."

Communications Staff The expansion of the media has redefined the communications office's role. In the days before television, presidents from Coolidge to Eisenhower held press conferences before a mix of print journalists and radio broadcasters. In the 1930s, Franklin Roosevelt pioneered the radio message with his fireside chats, and John F. Kennedy did the first live televised press conferences in the early 1960s. The communication office works to control information coming out of the White House and try to shape the president's message that will ultimately define his policy agenda and its success or failure.

The White House press secretary is appointed by the president. The chief responsibility is to keep the White House press corps aware of important events in the president's schedule and knowledgeable about presidential actions.

Spin and Manipulation The press conference is in many ways a staged event. Press secretaries and presidents anticipate questions and rehearse in advance with planned answers. President George W. Bush's critics complained that his press relations were an affront to the media. Reporter and media expert Eric Alterman and others reported how the Bush administration was caught manipulating the news process. The president's administration distributed government-prepared "news reports" to local TV stations across the country to promote his programs, planted a fake reporter in the briefing room to throw softball questions at the president's press secretary, and paid large sums of public money to writers to promote their programs. The most notable example was a payment of \$240,000 that went to conservative columnist and radio host Armstrong Williams to promote Bush's No Child Left Behind initiatives.

Modern Technology and a Social Media President

From advances in the printing press to the advent of Twitter, presidents have had to keep pace with technology. From Eisenhower to Clinton, the president could cut into the big three television networks with an announced speech. Now, with the exception of the State of the Union address, many public addresses are aired only by lesser-watched cable TV channels. The 24-hour news cycle is always hungry for headlines. The recent explosion of immediate electronic communication, social media use, push notifications, and the reliance on the Internet for information has transformed how the president communicates with the people to accomplish his policy agenda.

Obama Embraces New Media On his way to the White House, President Obama forecasted his media presence when he hired a 30-year-old "new media director," introduced a Twitter feed, and employed a videographer to upload segments on YouTube and, later, on WhiteHouse.gov. As president, Obama employed a 14-member staff on the new White House Office of Digital Strategy, a crew slightly larger than George W. Bush's press secretary's office. By his second term, President Obama had essentially created his own news service, digitally transmitting a stream of photo images, videos, blog posts, and interviews for social media sites for his fans and skeptics alike. Twitter, Facebook, Snapchat, Instagram, and Flickr quickly became standard platforms to broadcast his message.

The Obama team found this digital bully pulpit useful in a continuing effort to persuade the citizenry, who could then apply pressure on their representatives in Congress to accomplish the Obama agenda. During his two terms, the White House generated close to 300 infographics supplying people with quick and digestible data. The Obama team worked hard to successfully compress complex ideas and goals into Twitter bites. They found this strategy useful and easy to microtarget—that is, to target certain audiences with specific messages. In his quest for a health care law and amid the GOP’s efforts to stop it, the White House established a “Reality Check” website which debunked his opponents’ rumors about the drawbacks of the health care plan.

Image Control Presidents for some decades have employed a taxpayer-funded photographer. Congress has allotted the money for this purpose for the good of the office, to create a record, and to connect people with government. Obama’s photographer, Pete Souza, and the new media team used photography as a way to legitimize his presidency, portray him as a man of the people, promote policy programs, and generally chronicle his presidency.



Source: Wikimedia Commons, Pete Souza

President Obama talks with Diego Diaz through the Make-a-Wish Foundation.

As photography has become affordable and common among media outlets, independent photojournalists want to show the presidency with their own original images and to tell the full story of the president, not the controlled story. Much like Teddy Roosevelt’s efforts of shaping his image with expensive photography more than a century ago, Obama’s publicly distributed photos were carefully curated to show the president in a particular light.

“Obama [took] unprecedented advantage of the digital revolution in photography,” says expert Cara Finnegan in an Illinois News Bureau interview. By the end of his administration, his Flickr feed had more than 6,500 quality and well-chosen images. Meanwhile, the White House took steps to prevent independent journalistic photographs, hoping that a greater share of White House-released photos would dominate news websites. The press corps’ response revealed a unique relationship between the president and the press. The president’s press

secretary, Jay Carney, found himself bombarded with complaints. “Our problem is access,” said correspondent Ann Compton. “You can put out a million pictures a day from the White House photographer, but you bar photos [from *Air Force One*].” Correspondent Brianna Kieler declared, “Anyone here can tell you, that there’s less access than under the Bush Administration.” Journalists were chafed because the practice resembled media strategies of dictators in countries with no free press and only state-approved images. Obama’s grand attempts to shape his image and get the citizenry to know him led the *New York Times* to call him “Obama the Omnipresent.”

Tweeter in Chief Within his first year in office, President Trump became well known for the use of his Twitter feed to speak directly to the nation. Shortly before taking office, Trump tweeted, “I use Social Media not because I like to, but because it is the only way to fight a VERY dishonest and unfair ‘press,’ now often referred to as Fake News Media. Phony and non-existent ‘sources’ are being used more often than ever. Many stories & reports a pure fiction!”

Trump has all but severed the presidency’s relationship with objective journalists and the mainstream media. Early in his tenure, Trump’s first press secretary shared misleading information about crowd sizes and photos from Trump’s inauguration. Daily press briefings were ended by the Trump administration in March 2019 after many contentious exchanges between the media and the president’s press secretaries, and Trump has refused to appear at the White House Correspondents Association annual gala.

All presidents have a somewhat adversarial relationship with the press, but Trump disparages journalists and refers to any mainstream media outlet criticism as “fake news.” He has broken established presidential communication norms repeatedly.

REFLECT ON THE ESSENTIAL QUESTION

Essential Question: *How has communication technology changed the president's relationship with the American people and other branches? On separate paper, complete a chart like the one below.*

Communication or Technology Change	Presidential Use of Communication or Technology

KEY TERMS AND NAMES

bully pulpit	State of the Union Address
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CHAPTER 5 Review:

Learning Objectives and Key Terms

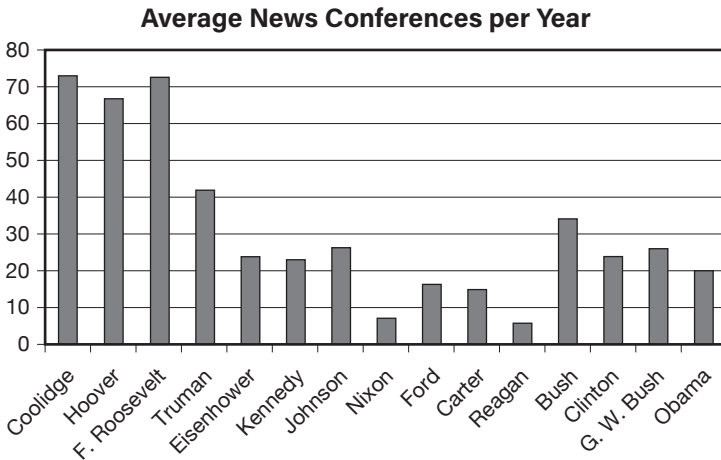
TOPIC 2.4: Explain how the president can implement a policy agenda. (CON-4.A)	
Formal and Informal Powers to Accomplish Policy Agenda (CON-4.A.1 & 2)	
bargaining and persuasion	informal powers
Commander in Chief	line-item veto
formal powers	pocket veto
executive agreement	policy agenda
executive order	signing statements
executive privilege	veto
TOPIC 2.5: Explain how the president's agenda can create tension and frequent confrontations with Congress. (CON-4.B)	
Conflict with Senate Over Appointments (CON-4.B.1 & 2)	Congressional Conflict Over Policy (CON-4.B.3)
ambassador	inherent powers
Cabinet	
chief of staff	
Joint Chiefs of Staff	
TOPIC 2.6: Explain how presidents have interpreted and justified their use of formal and informal powers. (CON-4.C)	
Defining the Role and Power of the President (CON-4.C.1, 2, & 3)	
<i>Federalist No. 70</i>	stewardship theory
imperial presidency	Twenty-second Amendment (1951)
Jackson, Andrew	Washington, George
Lincoln, Abraham	War Powers Act (1973)
Roosevelt, Franklin D.	Wilson, Woodrow
Roosevelt, Theodore	
TOPIC 2.7: Explain how communication technology has changed the president's relationship with the national constituency and the other branches. (CON-4.D)	
Modern Technology and Presidential Communication (CON-4.D.1)	
bully pulpit	State of the Union Address

CHAPTER 5 Checkpoint: The Presidency

Topics 2.4–2.7

MULTIPLE-CHOICE QUESTIONS

Questions 1 and 2 refer to the graph below.



Source: The American Presidency Project

1. Which of the following statements describes a trend in the data based on the chart?
 - (A) Coolidge, Hoover, and Roosevelt were the first to take advantage of televised news conferences.
 - (B) The average number of press conferences dropped in the 1970s and 1980s.
 - (C) The most recent presidents have held the most frequent press conferences.
 - (D) Presidents who gave more press conferences had higher approval ratings.
2. Which of the following statements do the data imply?
 - (A) As more media platforms have become common, presidents have steadily increased their number of news conferences.
 - (B) Recent presidents are communicating in various ways and thus need fewer press conferences.
 - (C) Presidents who held fewer press conferences were elected to only one term.
 - (D) Press conferences are a product of the television era.

3. Which of the following may the president do to control the implementation of a policy agenda?
- (A) The president can veto particular items or language in a bill he disagrees with while enacting the remainder of the bill.
 - (B) The president can veto a congressional bill that has passed the House and Senate.
 - (C) The president can refuse to spend money that Congress has appropriated.
 - (D) The president can impeach selected members of Congress.
4. The president receives a bill in the middle of a congressional session that has recently passed the Democrat-controlled House and Democrat-controlled Senate. This omnibus bill deregulates the food and agriculture industries, something the president desires. Yet the bill also funds modern art museums in San Francisco and New York City, which the president thinks are unnecessary. Which action will the president likely take?
- (A) Exercise a line-item veto to exclude the funding for the art museums while passing the deregulation part of the bill.
 - (B) Refuse to sign the bill, allowing it to die with a pocket veto.
 - (C) Sign the bill to gain the deregulations understanding that Congress will fund the art museums.
 - (D) Sign the bill and explain in a signing statement that the deregulations will be enforced but museum funds will not be appropriated.
5. Which of the following accurately describes the president's lawful use of the War Powers Act?
- (A) A president can declare war as long as it ends in 60 days.
 - (B) A president can engage an enemy abroad but must wait for congressional approval and funding.
 - (C) A president can use the military abroad in combat as long as Congress is informed within 48 hours.
 - (D) A president cannot act as Commander in Chief without a congressional declaration of war.

6. Which of the following is an accurate comparison of the president's Cabinet and White House staff?

	CABINET	WHITE HOUSE STAFF
(A)	The Cabinet has more influence on the president's decision making than does the White House staff.	Presidents have continually relied less on their White House staff for input in guiding government.
(B)	Presidents can remove Cabinet officials but only with Senate approval.	The White House staffers require Senate approval before taking office.
(C)	The Cabinet includes department secretaries and others the president wishes to include.	The president engages with White House staff more frequently than with Cabinet secretaries.
(D)	The president can create new Cabinet-level positions and departments.	The White House staff includes the attorney general and the FBI director.

FREE-RESPONSE QUESTIONS

Concept Application

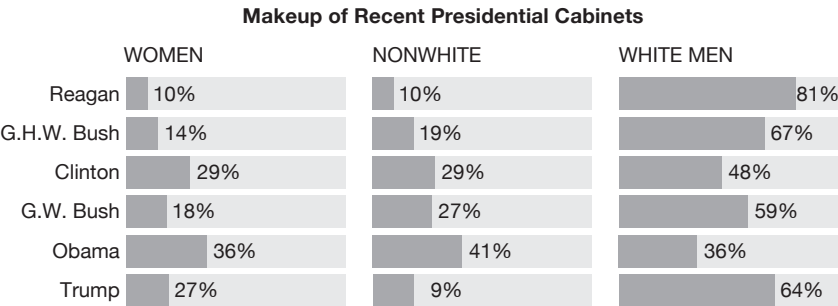
1. "This morning [Homeland Security] Secretary Napolitano announced new actions my administration will take to mend our Nation's immigration policy to make it more fair, more efficient, and more just, specifically for [young people. These] young people . . . study in our schools, they play in our neighborhoods, they're friends with our kids, they pledge allegiance to our flag. They are Americans in their heart, in their minds, in every single way but one: on paper. They were brought to this country by their parents . . . and often have no idea that they're undocumented . . . Over the next few months, eligible individuals who do not present a risk to national security or public safety will be able to request temporary relief from deportation proceedings and apply for work authorization."

—President Barack Obama, June 15, 2012

After reading the above passage, respond to A, B, and C:

- (A) Describe the presidential power exhibited in the announced policy.
- (B) In the context of the scenario, explain how the use of the power described in part A can be affected by interactions between the president and Congress.
- (C) In the context of the scenario, explain how the interaction between the president and Congress can be affected by the media.

Quantitative Analysis



Notes

— The 22 Cabinet-level positions in the Obama administration (not counting the Vice President) are held constant across all five administrations, except for the Department of Homeland Security, which wasn't established until 2002. We have counted Tom Ridge, the first DHS secretary, as an initial pick for George W. Bush.

— Census Bureau classifications were used for race. Hispanics are counted as nonwhite.

2. Use the information graphic to answer the following questions.
- (A) Identify the demographic most represented in presidential cabinets.
 - (B) Describe a difference in the demographic makeup of presidential cabinets, as illustrated in the information graphic.
 - (C) Draw a conclusion about the difference you described.
 - (D) Explain how the makeup of presidential cabinets as shown in the information graphic demonstrates the principle of presidential leadership of the executive branch.

CHAPTER 6

The Judiciary

Topics 2.8–2.11

Topic 2.8 The Judicial Branch

CON-5.A: Explain the principle of judicial review and how it checks the powers of the other institutions and state governments.

- Required Foundational Documents:
 - *Federalist No. 78*
 - The Constitution of the United States
- Required Supreme Court Case:
 - *Marbury v. Madison* (1803)

Topic 2.9 Legitimacy of the Judicial Branch

CON-5.B: Explain how the exercise of judicial review in conjunction with life tenure can lead to debate about the legitimacy of the Supreme Court's power.

Topic 2.10 The Court in Action

CON-5.B: Explain how the exercise of judicial review in conjunction with life tenure can lead to debate about the legitimacy of the Supreme Court's power.

Topic 2.11 Checks on the Judicial Branch

CON-5.B: Explain how the exercise of judicial review in conjunction with life tenure can lead to debate about the legitimacy of the Supreme Court's power.

CON-5.C: Explain how the other branches in the government can limit the Supreme Court's power.



Source: Wikimedia Commons

U.S. Supreme Court Building, Washington, DC

The Judicial Branch

"It is emphatically the province and duty of the judicial department to say what the law is."

—Chief Justice John Marshall, Opinion in
Marbury v. Madison, 1803

Essential Question: How does the principle of judicial review check the power of the other branches and state government?

Most people have some understanding of trials in which one party sues another and accused criminals are innocent until proven guilty. Courtroom drama has been popular since Perry Mason—a 1950s television defense attorney who lost only one case in a nine-year series. More recently, TV has stereotyped small claims courts with a feisty, tell-it-like-it-is judge, a beefy courtroom bailiff, and litigants who rudely yell at each other.

The true picture of the judiciary shows a revered institution shaped by Article III of the Constitution, the Bill of Rights, and federal and state laws. The courts handle everything from speeding tickets to death penalty cases. State courts handle most disputes, whether criminal or civil. Federal courts handle crimes against the United States, high-dollar lawsuits involving citizens of different states, and constitutional questions. Federal courts are designed to protect the judiciary's independence. The U.S. Supreme Court is the nation's highest tribunal, which, through judicial review and its rulings, shapes the law and how it is carried out.

Constitutional Authority of the Federal Courts

Today's three-level federal court system consists of the **U.S. District Courts** on the lowest tier, the **U.S. Circuit Courts of Appeals** on the middle tier, and the **U.S. Supreme Court** alone on the top. These three types of courts are known as "constitutional courts" because they are either directly or indirectly mentioned in the Constitution. All judges serving in these courts are appointed by presidents and confirmed by the Senate to hold life terms.

No national court system existed under the Articles of Confederation, so the framers decided to create a national judiciary while empowering Congress to expand and define it. Because states had existing courts, many delegates saw no reason to create an entirely new, costly judicial system to serve essentially the same purpose. Others disagreed and argued that a national judicial system with

a top court for uniformity was necessary. “Thirteen independent [state] courts of final jurisdiction over the same cases, arising out of the same laws,” *Federalist No. 80* argued, “will produce nothing but contradiction and confusion.”

Article III

The only court directly mentioned in the Constitution is the Supreme Court, though Article III empowered Congress to create “inferior” courts. Article III established the terms for judges, the jurisdiction of the Supreme Court, the definition of treason, and a defendant’s right to a jury trial.

Judge’s Terms All federal judges “shall hold their offices during good behavior,” the Constitution states. Although this term of office is now generally called a “life term,” most U.S. judges retire or go on senior status at age 65, and a handful have been impeached and removed. This key provision empowers federal judges to make unpopular but necessary decisions. The life term assures that judges can operate independently from the other branches, since the executive and legislative branches have no power to remove justices over disagreements in ideology. The life term also allows for consistency over time in interpreting the law. Congress cannot diminish judges’ salaries during their terms in office. This way, Congress cannot use its power of the purse to leverage power against this independent branch.

Jurisdiction The Supreme Court has **original jurisdiction**—the authority to hear a case for the first time—in cases affecting ambassadors and public ministers and those in which a state is a party. For the most part, however, the Supreme Court acts as an appeals court with **appellate jurisdiction**.

Treason Article III also defined *treason* as “levying war” or giving “aid or comfort” to the enemy. Treason is the only crime mentioned or defined in the Constitution. Because English kings had used the accusation of treason as a political tool in unfair trials to quiet dissent against the government, the founders wanted to ensure that the new government could not easily levy or prosecute that charge just to silence alternative voices. At least two witnesses must testify in open court to the treasonous act in order to convict the accused.

Right to Jury Trial Also mentioned in Article III is a criminal defendant’s right to a jury trial. Many more rights of the accused were included later in the Bill of Rights, but the framers saw the right to a jury trial as a citizen check on government accusation and was thus included in the article.



FOUNDATIONAL DOCUMENTS: *FEDERALIST NO. 78*

Anti-Federalists were concerned about establishing an independent judiciary. In England, Parliament could vote to remove judges from office, and it could pass laws overriding judicial decisions. Brutus, the mouthpiece for the Anti-Federalists, expressed concern that there was no similar checking power on the

Supreme Court. “Men placed in this situation,” he wrote in *Brutus No. 15*, “will generally soon feel themselves independent of heaven itself.”

Alexander Hamilton and other Federalists did not share this concern. In *Federalist No. 78*, Hamilton affirmed that the independent judicial branch has the power of **judicial review** to examine acts of legislatures to see if they comport with the proposed Constitution. He also emphasized that as long as judges are acting properly, they shall remain on the bench. This “permanency” shall protect them from the other branches when they make unpopular but constitutional decisions. He believed an independent judiciary posed no threat.

However, the establishment of judicial review was not settled by Hamilton’s writing. As you will read, the landmark decision in *Marbury v. Madison* (1803) established that principle. Nonetheless, it is still debated today.

[The judiciary] will always be the least dangerous to the political rights of the constitution; because it will be least in a capacity to annoy or injure them. . . .

[since it] has no influence over either the sword or the purse. . . .

[F]rom the natural feebleness of the judiciary, it is in continual jeopardy of being overpowered, awed, or influenced by its coordinate branches; and that as nothing can contribute so much to its firmness and independence as permanency in office . . . No legislative act contrary to the Constitution, can be valid. To deny this, would be to affirm, that the deputy is greater than his principal; that the servant is above his master; that the representatives of the people are superior to the people themselves. . . . A Constitution is, in fact, and must be regarded by the judges, as a fundamental law. It therefore belongs to them [the judges] to ascertain its meaning, as well as the meaning of any particular act proceeding from the legislative body. . . .

[T]he independence of the judges may be an essential safeguard against the effects of occasional ill humors in the society. These sometimes extend no farther than to the injury of the private rights of particular classes of citizens, by unjust and partial laws. That inflexible and uniform adherence to the rights of the Constitution, and of individuals, which we perceive to be indispensable in the courts of justice, can certainly not be expected from judges who hold their offices by a temporary commission.

Political Science Disciplinary Practices: Analyze and Interpret *Federalist No. 78*

When analyzing and interpreting sources, consider the following factors:

- Claims—What statements are asserted to be true?
- Perspective—How does the context (time, place, and circumstance) affect the author’s viewpoints?
- Evidence—What facts or experiences does the author use to support claims?
- Reasoning—How does the author link the evidence to the claims?

Apply: Complete the following activities.

1. Describe Hamilton’s claim about the power of the judiciary.
2. Describe Hamilton’s perspective in terms of the context in which he argues his support of the Federalist plan of government.

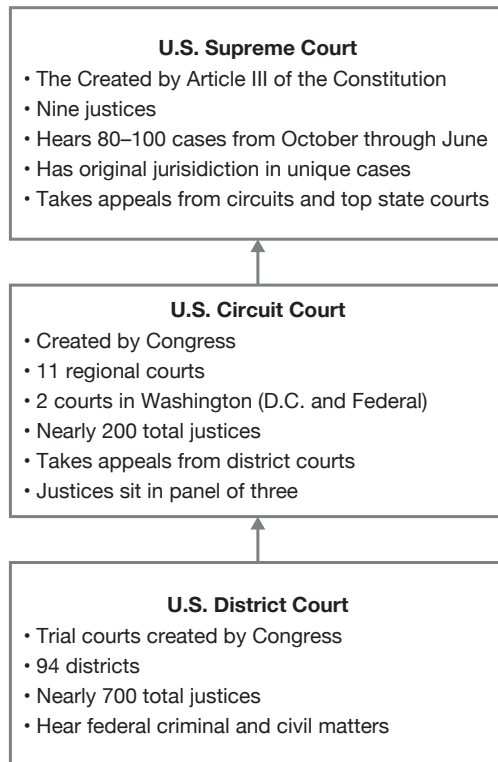
3. Describe the evidence Hamilton offers to back up his claim on the relative power of the judiciary.
4. Describe Hamilton's reasoning for supporting life terms.
5. Explain how the implications of Hamilton's argument relate to checks and balances in government.

You can read the full text of *Federalist No. 78* online.

A Three-Level System

The first Congress essentially defined the three-tier federal court system with the Judiciary Act of 1789. Originally, one district court existed in each state. The law also defined the size of the Supreme Court with six justices, or judges. President Washington then appointed judges to fill these judgeships. In addition to the district courts, Congress created three regional circuit courts designated to take cases on appeal from the district courts. Supreme Court justices were assigned to oversee the U.S. appeals courts that includes clusters of states, a “circuit,” and presided over periodic sessions. The justices would hold one court after another in a circular path, an act that became known as “riding circuit.”

Federal Court System



U.S. District Courts

There are 94 district courts in the United States—at least one in each state, and for many less-populated western states, the district lines are the same as the state lines. Districts may contain several U.S. courthouses served by several federal district judges. Nearly 700 district judges preside over trials concerning federal crimes, lawsuits, and disputes over constitutional issues. Annually, the district courts receive close to 300,000 case filings, most of a civil nature.

A Trial Court U.S. district courts are trial courts with original jurisdiction over federal cases. The litigants in a trial court are the plaintiff—the party initiating the action—and the defendant, the party answering the claim. In a criminal trial, the government is the plaintiff, usually referred to as the “prosecution.” In civil trials, a citizen-plaintiff brings a lawsuit against another, the defendant, who allegedly injured the plaintiff. “Injury” could be physical injury—as one motorist may have recklessly caused to another—but more often it is a financial injury, alleging the defendant’s fault, measured in dollars. At times, it is an accusation that the government has injured a citizen, or a company, by violating their liberty.

Federal Crimes The U.S. district courts try federal crimes, such as counterfeiting, mail fraud, or evading federal income taxes—crimes that violate the enumerated powers in the Constitution, Article I, Section 8. Most violent crimes, and indeed most crimes overall, are tried in state courts. However, Congress has outlawed some violent crime and interstate actions, such as drug trafficking, bank robbery, terrorism, and acts of violence on federal property. For example, in *United States v. Timothy McVeigh* (1998), the government argued that McVeigh was responsible for an explosion in an Oklahoma City federal building that killed 168 people. A federal court found him guilty and sentenced him to death.

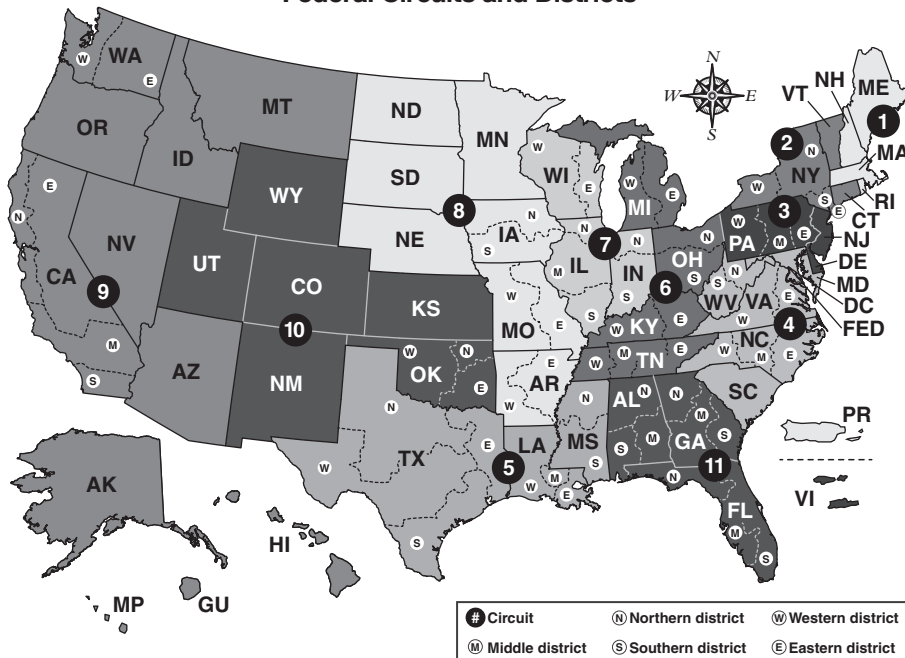
U.S. Attorneys Each of the 94 districts has a U.S. attorney, appointed by the president and approved by the Senate, who represents the federal government in federal courts. These executive branch prosecutors work in the Department of Justice under the **attorney general**, assisted by the FBI and other federal law enforcement agencies. Nationally, they try nearly 80,000 federal crimes per year. Of those, immigration crimes and drug offenses take up much of the courts’ criminal docket. Fraud is third.

Civil Cases Citizens can also bring civil disputes to U.S. court to settle a business or personal conflict. Some plaintiffs sue over torts, or civil wrongs that have damaged them. In a lawsuit, the plaintiff files a complaint, a brief explaining the damages and why the defendant should be held liable. The plaintiff must prove the defendant’s liability or negligence with a “preponderance of evidence” for the court to award damages. Most civil disputes, even million-dollar lawsuits, are handled in state courts.

Disputes involving constitutional questions also land in this court. In these cases, a federal judge, not a jury, determines the outcome because these cases

involve a deeper interpretation of the law. Sometimes a large group of plaintiffs accuse the same party caused damage to them and will file a class action suit. After a decision, courts may issue an *injunction*, or court order, to the losing party in a civil suit, making them act or refrain from acting to redress a wrong.

Federal Circuits and Districts



Suing the Government Sometimes a citizen or group sues the government. Technically, the United States operates under the doctrine of sovereign immunity—the government is protected from suit unless it permits such a claim. Over the years, Congress has made so many exceptions that it even established the U.S. Court of Claims to allow citizens to bring complaints against the United States. Individual citizens and groups also regularly bring constitutional arguments before the courts. One can sue government officials acting in a personal capacity. For example, the secretary of defense could be personally sued for causing a traffic accident that caused thousands of dollars in damage to another’s car. But the secretary of defense or Congress cannot be sued for the loss of a loved one in a government-sanctioned military battle.

U.S. Circuit Courts of Appeals

Above the district courts are the U.S. Circuit Courts of Appeals. In 1891, with U.S. expansion and the increased caseload for the traveling Supreme Court justices riding circuit, Congress made the U.S. appeals courts permanent, full-time bodies. Appeals courts don’t determine facts; instead, they shape the law. The losing party from a fact-based trial can appeal based on the concept of *certiorari*, Latin for “to make more certain.” The appellant must offer some

violation of established law, procedure, or precedent that led to the incorrect verdict in a trial court. Appeals courts look and operate differently than trial courts. Appeals courts have a panel of judges sitting at the bench but no witness stand and no jury box because such courts do not entertain new facts, but rather a narrow question or point of law.

The petitioner appeals the case, and the respondent defends the lower court's ruling. The public hearing lasts about an hour as each side makes oral arguments before the judges. Appeals courts don't declare guilt or innocence when dealing with criminal matters, and they don't generally reverse judgements in civil suits. They rule on procedural matters in which the lower courts or other parts of government may have erred, not followed precedent, or violated the Constitution. They periodically establish new principles with case law. After years of deciding legal principles, appeals courts have shaped the body of U.S. law.

The U.S. Courts of Appeals consist of 11 geographic circuits across the country. Appeals court rulings stand within their geographic circuits. In addition to the 11 circuits, two other appeals courts are worthy of note. The Circuit Court for the Federal Circuit hears appeals dealing with patents, contracts, and financial claims against the United States. The Circuit Court of Appeals for the District of Columbia, among other responsibilities, handles appeals from those fined or punished by executive branch regulatory agencies. The DC Circuit might be the second most important court in the nation and has become a feeder for Supreme Court justices.

The United States Supreme Court

Atop this hierarchy is the U.S. Supreme Court, with the chief justice and eight associate justices. The Supreme Court mostly hears cases on appeal from the circuit courts and from the state supreme courts. The nine members determine which appeals to accept, sit *en banc* (French for “on the bench,” where all judges sit for the case) for attorneys’ oral arguments, pose questions, and engage in a discussion with the litigants. They will consider their decision for weeks, sometimes months, vote whether or not to overturn the lower court’s ruling, and issue their reasoning. The Court overturns about 70 percent of the cases it takes. Once the Supreme Court makes a ruling, it becomes the law of the land. Contrary to what many believe, the Supreme Court doesn’t hear trials of serial murders or billion-dollar lawsuits. However, it decides on technicalities of constitutional law that have a national and sometimes historic impact. This power of judicial review, to check the other branches, was established in the 1803 case of *Marbury v. Madison*.



MUST-KNOW SUPREME COURT CASE: *MARBURY V. MADISON* (1803)

The Constitutional Question Before the Court: Can an appointed judge sue for his appointment, and does the Supreme Court have the authority to hear and implement this request?

Decision: Yes and no. Unanimous, 4:0

Facts: This controversy started as a dispute regarding the procedures of appointments during a presidential transition. Outgoing President John Adams had lost re-election to Thomas Jefferson and, in one of his final acts as president, appointed several members of his own Federalist Party to the newly created judgeships. The Senate had confirmed these “midnight judges,” so-called because their appointment was made so late in the tenure of President Adams. Secretary of State John Marshall, who had just been named chief justice of the Supreme Court, had prepared the commissions, the official notices of appointment, and had most of them delivered. William Marbury was among 17 appointees who did not receive official notice. Marshall simply left these to be delivered by the next administration.

Once President Thomas Jefferson, a Democratic-Republican, took office, he instructed his new Secretary of State, James Madison, to hold the commissions. Jefferson did reappoint several of those appointees, but he refused others on partisan grounds. Marbury wanted the Supreme Court to issue a court order known as a writ of mandamus forcing Madison and the executive branch to deliver the appointment to him and, thus, his job.

Marbury brought the case to the Supreme Court because of language in the relatively new Judiciary Act of 1789 that defined the Supreme Court’s jurisdiction in cases like his.

Reasoning: Marshall’s Supreme Court took the case and determined that an appointed judge with a signed commission could sue if denied the job. (That is the yes vote.) However, the Court also ruled that the law entitling Marbury to the commission and the job, Section 13 of the Judiciary Act, ran contrary to Article III of the Constitution when it decided that the court had original rather than appellate jurisdiction in such cases. (That is the no vote.) Congress could not, the Marshall Court said, define the Court’s authority outside the bounds of the Constitution.

The Court unanimously ruled that it had no jurisdiction in the matter, and in so ruling, cancelled Marbury’s claim. It simultaneously instituted the practice of judicial review. The Court had asserted its powers and checked Congress.

The Court’s Unanimous Opinion by Mr. Justice John Marshall:

If it had been intended to leave it in the discretion of the legislature to apportion the judicial power between the supreme and inferior courts according to the will of that body, it would certainly have been useless to have proceeded further than to have defined the judicial power, and the tribunals in which it should be vested . . .

The authority, therefore, given to the Supreme Court, by the act establishing the judicial courts of the United States [the Judiciary Act of 1789], to issue writs of mandamus to public officers, appears not to be warranted by the constitution . . .

The act to establish the judicial courts of the United States authorizes the Supreme Court “to issue writs of mandamus, in cases warranted by the principles and usages of law, to any courts appointed, or persons holding office, under the authority of the United States.” The secretary of state, being a person, holding an office under the authority of the United States, is precisely within the letter of the description; and if this court is not authorized to issue a writ of mandamus to such an officer, it must be because the law is unconstitutional. . .

It is emphatically the province and duty of the judicial department to say what

the law is. Those who apply the rule to particular cases, must of necessity expound and interpret that rule. If two laws conflict with each other the courts must decide on the operation of each . . .

So, if a law be in opposition to the Constitution; if both the law and the constitution apply to a particular case, so that the court must either decide that case conformably to the law, disregarding the constitution; or conformably to the constitution, disregarding the law; the court must determine which of these conflicting rules governs the case. This is of the very essence of judicial duty . . .

Since *Marbury*: *Marbury* is a landmark case for its initiation of judicial review in American jurisprudence and in defining common law. Marshall had declared at the Virginian Ratifying Convention—a Federalist allaying fears of opponents to the proposed Constitution—that Congress would not have power to make law on any subject it wanted. A new federal judiciary, he said, “would declare void” any such congressional act repugnant to the Constitution. Marshall became the first judge to do just that.

Judicial review or striking down acts of Congress came as a rarity after *Marbury*. Not until the infamous *Dred Scott* case in 1857 did the Court again strike down a law, this time one that outlawed slavery north of the Missouri Compromise line. During the Industrial Era (1874–1920) and into the 20th century, the Court used its power of judicial review to strike down laws with greater frequency.

Political Science Disciplinary Practices: Analyze and Interpret Supreme Court Decisions

1. Describe the law that led to the *Marbury v. Madison* case.
2. Explain the Court’s reasoning from the majority opinion.
3. Explain how the Court’s ruling establishes the power of *judicial review*.
4. Explain how the ruling in *Marbury* relates to the U.S. Constitution.
5. Explain how the ruling in *Marbury* relates to *Federalist No. 78*.



THINK AS A POLITICAL SCIENTIST: EXPLAIN HOW A SUPREME COURT CASE RELATES TO A FOUNDATIONAL DOCUMENT

As the foundation of the U.S. government, the Constitution defines the powers and roles of the branches. Yet, the Constitution has over the years needed to be refined with an amendment or an interpretation by the court system.

For example, Article III of the Constitution defines the judicial branch of the federal government but does not expressly confirm the power of judicial review—a power occasionally practiced by courts by this time. The Supreme Court’s first exercise of judicial review came with *Marbury v. Madison* (1803).

Practice: Read the excerpts on the next page from Article III and Article VI of the Constitution and answer the questions that follow.

Article III

Section 1. *Federal Courts* The judicial power of the United States shall be vested in one Supreme Court, and in such inferior [lower] courts as the Congress may from time to time ordain and establish. The judges, both of the Supreme and inferior courts, shall hold their offices during good behavior, and shall, at stated times, receive for their services a compensation, which shall not be diminished during their continuance in office.

Section 2. *Jurisdiction of Federal Court* [1] The judicial power shall extend to all cases in law and equity arising under this Constitution, the laws of the United States, to controversies to which the United States shall be a party; to controversies between two or more states, between a state and citizens of another state, between citizens of different states, between citizens of the same state claiming lands under grants of different states, and between a state, or the citizens thereof, and foreign states, citizens, or subjects.

Article VI

Section 2. *Federal Supremacy* This Constitution, and the laws of the United States which shall be made in pursuance thereof, and all treaties made, or which shall be made, under the authority of the United States shall be the supreme law of the land; and the judges in every state shall be bound thereby, anything in the Constitution or laws of any state to the contrary notwithstanding.

1. What powers are given to federal courts in these sections?
2. How does the decision in *Marbury* build on the powers expressed in the articles above to establish the power of judicial review?

REFLECT ON THE ESSENTIAL QUESTION

Essential Question: *How does the principle of judicial review check the power of the other branches and state government? On separate paper, complete a chart like the one below.*

Checks on Other Branches and States	Judicial Review and <i>Marbury v. Madison</i>

KEY TERMS AND NAMES

appellate jurisdiction
Attorney General
certiorari
Federalist No. 78
judicial review

Marbury v. Madison (1803)
original jurisdiction
U.S. District Courts
U.S. Circuit Courts of Appeals
U.S. Supreme Court